



**JAMAICA CONSTABULARY FORCE**  
**Criminal Investigation Branch Standard Operating Procedures**

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# **CRIMINAL INVESTIGATION BRANCH (CIB)**

## **Standard Operating Procedures (SOP)**

## FOREWORD

The Jamaica Constabulary Force (JCF) in its modernization process is making all the necessary efforts to be equipped to effectively carry out investigations, make arrests and successfully prosecute perpetrators of crime in our society.

This Standard Operating Procedures (SOP) serves to inform, educate and enhance the ability of investigators within the JCF and supports JCF policy for all CIB staff to carry out investigations in a professional and effective manner. The task of investigating crimes in any society is always challenging and as such the security Forces have to be prepared to tackle this scourge by effectively and efficiently playing our part. However, the police alone cannot detect all crimes and offences and so we largely depend on the public to report crimes and support the investigative process.

Where a true partnership and supportive ‘community-life exists, there are particularly good opportunities for crime prevention and for the public to provide assistance to the police.

Criminals are also adapting and exploiting new technology to perpetrate crimes. In such a scenario, it has become imperative for the JCF to adapt itself to our fast changing society, in particular areas surrounding forensics, technology and new strategies. Higher standards of investigation and successful prosecutions can only be sustained if we focus our attention on the continuous development of new skills and methods, relevant to the type of investigations that we conduct.

This SOP has been written to provide practical information and guidance relating to criminal investigations and to enhance the professionalism of investigators. If we can deliver on these processes, I guarantee that we will have a better and more effective Criminal Investigation capability which will ultimately result in an improved clear up rate and the overall reduction of crime in Jamaica.



Owen Ellington, CD, MSc., BSc.  
Acting Commissioner of Police

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## **1. Terms of Reference**

To conduct professional and effective Divisional and Area CIB investigations, in relation to all **Major Crimes** (*Force Orders # 1661, 5/4/1979*), and to disrupt, dismantle and prosecute the criminals involved by:

- i. Supporting and caring for victims and witnesses
- ii. Developing more effective investigative strategies including intelligence and community support
- iii. Improving and developing a professional and sustainable case management system to aid prosecutors and increase convictions at court
- iv. Working together with other professional bodies within the criminal justice system to reduce delays and
- v. Increasing public confidence in crime investigations, by working together with vulnerable communities, to solve local problems, in a new partnership approach to tackling violent crimes.

The local CIB will lead on the investigation of all **Major Crimes** (*Force Orders #1661 5/4/1979*) and support the reduction in offending, increase detections and convictions throughout the Division/Area.

This will be achieved by enhancing the professionalism of all crime investigations conducted by the CIB members in the Division/Area by appointing and maintaining experienced detectives to provide an effective response.

## 2. Selection Procedure for CIB Assistants

For members to be appointed an assistant to CIB the following criteria must be met:

- a) Show aptitude to criminal investigation.
- b) Apply through Divisional Crime Officer and interviewed locally
- c) Appointed by Divisional Manager (Superintendent) for the relevant attachment

## 3. Selection Procedure for CIB Aides

For members to be appointed an Aide to CIB the following criteria must be met:

- a) Have been working within a CIB formation for at least 6 months
- b) Have developed the investigative skills required to become an investigator
- c) Have assisted detectives in preparing case files
- d) Have **consistently** ensured their court cases are properly prepared and followed through
- e) Recommended by their Divisional Crime Officer for appointment.

The Area Crime Officer will then verify the application and supporting information and will then make the final recommendation to the ACP CIB for the applicant to be appointed as an Aide to CIB.

#### **4. Selection Procedure for Detectives** *(Force Order #3203 dated 23/10/08)*

For members of the JCF to be appointed a detective the following criteria must be met:

- a) Complete the Major Investigation Core Skills Course (Level 1)
- b) Pass the written qualifying examination (to be held annually)
- c) Complete and retain a work assessment record
- d) Be successful at the assessment interview
- e) Complete and pass the four (4) weeks Major Investigation Course (Level 2)

After which the officer will be appointed a Detective with a 12 month probationary period, whereby they will be continually assessed in the workplace and only after satisfactorily completing such will they be confirmed as a Detective.

#### **5. CIB Structure** *(See Appendix A)*

*CIB includes five (5) divisions each headed by a Senior Superintendent of Police: Transnational Crime and Narcotics Division (TCND), Major Investigation Taskforce (MIT), Organised Crime Investigation Division (OCID), Investigation Division (Inv.) and Technical Services Division (TSD), as also detectives of the geographic divisions.*

### **Terms of Reference**

#### **Investigation Division (Inv.)**

1. To manage and oversee the following specified units and to ensure that they conduct professional and effective investigations, within their area of responsibility;
  - ❖ **Flying Squad** (in the Corporate Area and St. Catherine, targeting major robbery, gangs and stolen car rings),
  - ❖ **Centre for the Investigation of Sexual Offences and Child Abuse, CISOCA** (providing specialist support and assistance to Divisional CIB officers investigating such offences in Kingston and St. Andrew)
  - ❖ Criminal Justice Support, and
  - ❖ Crime Stop

and to disrupt, dismantle and prosecute the criminals involved by:

- a) Supporting and caring for victims and witness
- b) Developing more effective investigative strategies including intelligence and community support
- c) Improving and developing a professional and sustainable case management system to aid prosecutors and increase convictions at court
- d) Working together with other professional bodies within the criminal justice system to reduce delays and

- e) Increasing public confidence in crime investigations, by working together with vulnerable communities to solve local problems, in a new partnership approach to tackle violent crime.
- 2. *Investigation Division* will monitor and oversee all major crime within Divisions and Area, throughout Jamaica; to ensure that they are effective, that investigative standards are being achieved and that the development needs of all CIB staff are being fully considered and developed.  
  
They will advised and support Divisional and Area Commanders regarding any issues/areas of concern. They will provide specialist support, knowledge and skills to the Commanders for their crime reduction strategies and advice and guide them on how improvements relating to major crime detections and convictions can be achieved.
- 3. *Investigation Division* will take the **strategic lead** for all major crime related strategies (excluding those assigned to other CIB formations), together with key areas requiring development, such as, CISOCA, investigative reviews, case management including leading on Court Users Groups and other improvements within Criminal Justice System.

#### **Major Investigation Taskforce (MIT)**

- 1. To conduct professional and effective investigations within **the designated areas\***, in relation to all **murders whereby firearms are used** (shooting murders) and to disrupt, dismantle and prosecute the criminals involved by:
  - a. Supporting and caring for victims and witness
  - b. Developing more effective investigative strategies including intelligence and community support
  - c. Improving and development a professional and sustainable case management system to aid prosecutors and increase convictions at court
  - d. Working together with other professional bodies within the criminal justice system to reduce delays
  - e. Increasing public confidence in crime investigations, by working together with vulnerable communities, to solve local problems, in a new partnership approach to tackle violent crime and
  - f. Developing and sharing best practice, relating to major investigations across the Force.
- 2. The MIT team will also be able to provide specialist support, knowledge and skills for the investigation of homicides and to support the reduction in offending, increase detections and conviction throughout Jamaica.

This will be achieved by providing a centralised and professional Taskforce to support and enhance the professionalism of all homicide investigations conducted by the JCF by:



- a) Forming a team of experienced detectives to provide a 'one stop' response for major disaster and homicide investigations by combining staff and resources from within the JCF, together with short term attachments for staff attached to other Divisions and Areas.
- b) Providing direct support, advice and oversight for major disasters and specific homicide investigations conducted by Divisional and/or Areas officers, as directed by the Assistant Commissioner of Police, Criminal Investigation Branch (CIB).

All of the above will be achieved from lessons learned and developed by Operation Kingfish, together with continuous improvement, by increasing our professional ability to conduct investigation with the highest standards and integrity.

**Counter Terrorism and Organised Crime Branch which was changed from Organised Crime Investigation Division (OCID) on Jan 19, 2015**

1. To be the lead, for the JCF for organised crime investigations (excluding trafficking narcotics) and the related investigative liaison work, in particular; **Kidnapping, Extortion, Human Trafficking, Stolen Motor Vehicles, Intellectual Property, Fugitive Apprehension, Financial Crimes** (Fraud and Public Sector Corruption), **Asset Seizure, Cyber Crime and Forensic Communication Division, Lottery Scam Task Force, Anti-gang , Firearms Trafficking; related evidence;** Fraud investigation;
2. To be the lead, for the **JCF**, on criminal investigations into specific area of responsibility, within Jamaica, targeting the organised criminals and their networks, together with local and international partners.
3. To be the investigative lead for the **JCF**, for national agencies, such as the Financial Investigation Division and the Inland Revenue Division to tackle the organised criminals and their networks, and to disrupt and dismantle, through effective and efficient investigations, their criminal networks, by utilising a partnership approach. (NIB will retain the lead intelligence)
4. To provide oversight and manage Divisional/Area investigations of such offences and to provide and manage Divisional/Area investigations of such offences and to provide advice, guidance and assistance when required to the Divisions, other units/organisations and the public, relating to the OCID's term of reference.

**Transnational Crime Narcotics Division (TCND)**

1. To be the lead, for the JCF on Transnational criminal investigations and the related investigative liaison work, in particular the trafficking of drugs and firearms together with the National Intelligence Bureau (NIB) who will retain the national lead for intelligence gathering and dissemination.
2. To be the lead, for the JCF on criminal investigations into these specific areas of criminal activity, within Jamaica, targeting top tier criminals and their networks, together with local and international partners (Operation Kingfish).

3. To be the investigative lead, for the JCF, for national agency liaison, such as the **Customs and the Immigration Service** to tackle the transshipment of such commodities and to disrupt and dismantle, through effective and efficient investigations, their criminal networks by utilising a partnership approach.
4. To provide oversight and manage the secure disposal of all narcotics seizures, island wide, and to provide advice, guidance and assistance when required to divisions, other units/organisations and the public, relating to the TCND terms of reference.

### **Technical Services Division (TSD)**

1. To be the lead, for the JCF on all forensic and technical support functions relating to forensic and criminal investigations, such as; Criminal Records Office, ballistics, Fingerprints, Statistics analysis and Questioned Documents and to support the forensic activities of the Government Forensic Laboratory.
2. To be the lead, for the JCF on developing new and innovative forensic strategies to solve crime utilising technology and applications that will aid the investigative process.

## **CIB Roles and Responsibilities**

### **Roles**

#### **ACP CIB**

- ❖ Strategic and policy lead for all crime related issues
- ❖ Ensuring the efficient and effective management for all CIB resources
- ❖ Leading on the Detective Development Programme and new investigative practices/techniques

#### **CIB 'Divisional' Commands**

- Operational and investigative lead for their area of responsibility
- Maintenance of personnel files, training and development of all their staff
- Achieve the Performance Indicators and Objectives set

### **Responsibilities**

- **ACP CIB**
  - *Reviewing and maintaining the CIB structure across the JCF*
  - *Monitor performance of CIB staff and investigations conducted*
  - *Oversee the effective and efficient management of all CIB staff*
  - *Oversee and maintain investigative standards relating to crime*
- **Investigation Division (Inv.)**
  - *Strategic lead for all CIB Divisional/Area units, Flying Squad, CISOCA, Criminal Justice Support (Witness Protection) and Crimestop*

- *Strategic lead and oversight for all crime investigations and case management processes conducted by Division/Area and investigative formations under their command*
- *“Corporate Area and St. Catherine” strategic lead for robbery investigations and reduction strategies/activities*
- *Strategic lead and monitoring for all CISOCA investigations island wide and the operational lead in Kingston and St. Andrew*
- *Strategic lead with Resident Magistrates and DPP’s office relating to investigative standards and procedures through effective and regular Court Liaison meetings etc.*
- **Major Investigation Taskforce (MIT)**
  - *Strategic lead on homicide investigations*
  - *Operational lead, in designated areas (Kingston and St. Andrew etc.) where MIT’s are established, relating to their specific terms of reference for that area*
  - *Oversight and support for all divisional MIT’s implemented (Clarendon, St. James etc.)*
  - *Island wide major disaster investigative function to support local investigators*
- **Organised Crime Investigation Division (OCID)**
  - *Strategic and operational lead for key ‘organised’ crime themes – Financial crimes (fraud, major public sector larceny and Corruption), Kidnapping, Extortion, Human Trafficking, Stolen Motor Vehicles, Cyber and Communication Crime*
  - *Maintain the Stolen Motor Vehicle register for the JCF and to maintain effective liaison with the Inland Revenue Department and insurance companies*
  - *Operational lead for all non narcotics ‘organised crime’ investigations/activities, identified and allocated, across divisional/area borders*
  - *Operational support for all divisional CIB investigations whereby specialist support and assistance is required*
  - *Designated JCF lead for all International Mutual Assistance Requests from international law enforcement bodies/agencies*
- **Transnational Crime and Narcotics (TCND)**
  - *Strategic and operational lead for all major crime transcending national borders*
  - *Strategic and operational lead for narcotics investigations and reduction programmes*
  - *Strategic and operational lead for all firearm trafficking offences*
  - *Strategic and operational lead to disrupt, dismantle and prosecute where practicable, major organised criminal and narcotics organisations*
  - *Kingfish Major Investigation Team (investigating specific criminal networks and their leadership)*
- **Technical Services Division (TSD)**
  - *Strategic and operational support for all Scene of Crime and JCF forensic services across Jamaica*
  - *Oversight and maintenance of the forensic standards to support crime investigations across Jamaica*

- *Strategic and operational lead for AFIS, IBIS, Statistics and criminal pattern/investigative analysis for the JCF*
- *Operational support and assistance to the Government Forensic Laboratory when required*
- *To develop new techniques and processes to continuously improve the JCF forensic capability and support crime investigations*

## 6. **Area Crime Officer** (*Force Order#3229 dated 23.4.09*)

A Superintendent will be appointed, as the Area Crime Officer, and their primary role will be the oversight of all CIB staff and adherence to legislation, Force policy and procedures for all crime investigations conducted within the Area (*Appendix B*). Line managed by the Area ACP and also reports to the ACP CIB.

## 7. **Divisional CIB Structure**

**Divisional Crime Officer** – The officer in charge of all crime investigations and related activity within a Division (*Appendix C*). Responsible for implementing the Divisional crime strategy, adherence to legislation and JCF policies and manages all CIB staff and resources on behalf of the Divisional Manager. Line managed by the Divisional Manager and also reports to the ACP CIB through the Area Crime Officer.

**Divisional Detective Inspector (DDI)** – The sub-officer in charge of the Registry (case files) within the Division (*Appendix D*). **Directly manages all Major Crime case files** and oversees the other case files (managed by Regular officers) and all aspects of the case management system for the Divisional Crime Officer. **Lead role relating to Court Users Group.** (See Appendix M).

**Detective Inspectors (DI)** – The Sub-Officer responsible for a specified area/zone or activity within a Division, such as Homicide. The minimum allocation to a division will be a DDI. For larger divisions, recording and investigating higher volume of crimes, additional DI's will be appointed and they will be provided specific job descriptions and areas of responsibility. Line Managed by the Divisional Crime Officer.

**Divisional Detectives** - A new formula has been devised to identify the number of detectives to be allocated to each division. This will be based on recorded crimes and other criteria, such as; minimum numbers to ensure 24/7 working, social deprivation and specialist support (MIT, CISOCA etc.).

The allocation will include **Detective Sergeants** to manage small teams of staff, including **Detective Corporals, Detective Constables, CIB Aide** and **CIB Assistants**. The team will be led by the Detective Sergeant and they will oversee all investigations allocated to their team, ensuring compliance with legislation, policy and procedures.

Individual officers will be allocated investigations and appointed as the Investigating Officer (**IO**), based on their skills, experience, training etc. The team leader will be responsible for overseeing all of their investigations and will ensure that they are promptly investigated. In the absence of the

**IO**, the Detective Sergeant will ensure that all activities relating to the investigation are completed and any new aspects allocated for action, without delay.

**Prosecution Liaison Officer (PLO)** (F.O. #3272 dd. 18/02/2010) – The sub-officer responsible to lead and advise on all issues affecting police prosecutions and to ensure police prosecutions are expeditiously and effectively conducted. (See Appendix E)

**CIB Station Vetting Sub-Officer** (F.O. #3259 dd. 19/11/2009) – The sub-officer will play a critical role in implementing the Divisional Crime Strategy and the JCF Policies on Standard Operating Procedures. (See Appendix F)

## **8. Divisional Primacy**

The Divisional Manager (Superintendent) is responsible for providing the management of and resourcing all CIB Divisional activity required to conduct effective and efficient crime investigations within their division. Additional support, for investigations and staffing, will be provided by the Area Crime Officer and the Area ACP, who will provide advice and assistance to the Divisional Superintendent, as required.

ACP CIB and CIB HQ is responsible for setting, maintaining and monitoring crime policy, investigative standards and to develop CIB staff skills and experience to ensure continuous improvements are made in our investigative capability, techniques and standards. Advice and assistance will be provided as required.

### **a) Divisional Supervision Duties** (F.O. #3302 dd. 16/09/2010)

In keeping with the roles and responsibilities of the Divisional Detective Inspector (DDI), it is recommended that the DDI should not be detailed for divisional supervision duties as a matter of course, as other inspectors are available to each division.

Only on rare and urgent situations should the DDI be so tasked, as their key role is to manage and drive forward all aspects of the case management system in the division. This is to ensure that effective investigations, reports and prosecutions are conducted on behalf of the divisional commander.

### **b) Collection of Certificates from Laboratory and Pathology** (F.O. #3257 dd Nov 5, 2009)

The responsibility for the collection of certificates and exhibits remains with the officer in charge (Superintendent) of the division or non-geographic formation. This may be delegated to the Divisional Detective Inspector (DDI) to ensure compliance on their behalf.

#### **Certificate ready for collection:**

The Forensic Laboratory or Pathology department must inform the officer in charge of the division/non-geographic formation that the certificate and exhibits are ready for collection. The officer in charge should ensure that certificates are collected within seven (7) days of receiving such notification.

The collecting officer must immediately inform the DDI that this has been completed and the certificate must be submitted promptly to the Clerk/DPP in cases where charges have been laid and a copy placed on the relevant case file.

Exhibits must be entered into the divisional property register and secured in the property store pending trial or disposal in accordance with Force policy. The case file must be updated showing the description of the exhibits returned and their location.

**c) Completing AFIS & IBIS Hits within the timelines set**

## **9. CIB Transfers**

*The transfer of Divisional Detective Inspectors and Divisional Crime Officers will only be made by CIB HQ*, as the JCF strategic crime lead. This is to ensure a balance is achieved across the force relating to skills, experience and management practices which have to be carefully considered, and this will only be made after consultation with the Area ACP, **Divisional Commanders** and the relevant Crime Officers.

The divisional/inter-Area transfer of Detective Constables, Detective Corporals and Detective Sergeants, within the existing Area, should only be made by the Area ACP, after consulting with CIB HQ, **Divisional Commander** and the relevant Crime Officers. Transfers outside the Area will only be made by CIB HQ.

Training is a vital activity to ensure investigative standards and continuous development is achieved and as such CIB HQ will be responsible for leading on all CIB training programmes and developmental opportunities, in close liaison with the Jamaica Police Academy (JPA) and the Criminal Investigation Training Institute (CITI), for all CIB staff across the island, and selections to attend such courses will be made by them.

Divisional and Area Commanders must ensure that all of the selected staff are allowed to attend the training and development programmes. Where critical staff are to be absent for a lengthy period CIB HQ will ensure that a suitable officer is identified to cover, during the original officers absence.

## **10. Tenure Period**

The period of time that detectives are attached and working in a single division, area or specialist formation should be limited to a period of 3 to 5 years. This will allow for staff to bring and share their working practices, to improve and to enhance local processes; utilising their training, knowledge and experience in other formations. In addition, this will allow staff to experience new posts/working practices. This will improve the migration of new processes by transferring the skills learnt between divisions, area and specialist formations. This will ensure continuous improvements are made and the rotated staff will also gain personally with increased knowledge, experience and a new working environment.

## **11. Major Crimes include:**

- Murder
- Rape
- Carnal Abuse
- Kidnapping
- Abduction
- Fraud
- Shooting with Intent
- Illegal Possession of Firearm
- Arson
- Robbery
- Break-ins

## 12. **Other crimes include the following:** (*Force Orders #1661, 5/4/1979*)

- Crime against persons
  - a) Manslaughter (as a result of motor vehicle accident except where Criminal Investigation Branch assistance is specially requested by the Divisional Officer)
  - b) Minor wounding (misdemeanour) and assault O.B harm
  - c) Assault at Common Law
  - d) Child Stealing
  - e) Concealment of birth
  - f) Defilement of girl (under 12; 14)
- Crime against Property
  - a) Simple Larceny (bicycle, cattle, electric/telephone wires, fence post, gates, poultry, etc.)
  - b) Praedial Larceny
  - c) Larceny Person
  - d) Larceny from motor vehicle
  - e) Driving away motor vehicle without owner's consent
  - f) Unlawful Possession – Agricultural produce
  - g) Malicious Destruction of Property
- Crime against Public Order
  - a) Riot
  - b) Rout
  - c) Unlawful Assembly
  - d) Public Mischief
- Other Offences

There are offences which by their nature can best be investigated by the first person on the scene whether uniform or Criminal Investigation Branch.

- a) Possession of House-breaking implement
- b) Vagrancy (armed with offensive weapon, enclosed premises, loitering, rogue and vagabond, suspected person, etc.)
- c) Breach Dangerous Drug Act (possession, smoking, etc.)
- d) Breach Firearm Act (except illegal possession of firearm)

### **13. Reported Major Crime/incident (such as murder, shooting, etc.)**

Control will dispatch a local police response in accordance with existing policy and practice. On arrival at the reported crime scene the first officer(s) will be responsible for commencing the investigation as per **the major scenes of crime policy**.

#### **Responsibilities of First Responder** (F.O. #)

1. Preserving life and minimising harm to all persons involved
2. Scene preservation, **prioritising**:
  - a. Cordons – utilising crime scene tape and police officers posted
  - b. Security of the scene and local area
  - c. Search for witnesses and suspects
3. Completion of crime scene Attendance Register (SOC 1)

Note – Divisional Radio Cars MUST have sufficient supplies of Crime Scene Tape and Logs. This is the responsibility of each Divisional Manager and their supervisors.

On establishing that a major crime has occurred the divisional investigating officer (usually the first police officer or/CIB officer on the scene) will inform Police Control

**Scene preservation is vital and no unauthorised persons will be admitted. Senior officers may attend AND REMAIN OUTSIDE the cordon, but will not enter until AFTER the scene examination has been concluded.**

**These investigations must be conducted in close consultation with other investigative units such as BSI, MIT, etc; where police or security forces may have been involved in a shooting with suspects/other persons. Valuable opportunities exist to bring early convictions against such offenders, provided the criminal use of firearms investigation is undertaken without delay.**

### **14. CIB Role at Major Crime Scenes**

CIB officers will provide a 24 hour, 7 day week response to all requests relating to **major crimes** and other such incidents requiring CIB attendance (suspicious deaths, etc.)

#### **CIB will provide:**

- The investigative lead



- Crime scene management and supervision
- An early and thorough assessment of the investigative opportunities
- Prioritisation of the immediate lines of enquiry and
- Implement an inclusive investigation strategy with the local police and community

**CIB officers will be responsible for:**

- Managing the examination and preservation of any evidence and exhibits found
- Directing and overseeing the search for witnesses and suspects
- Seeking community support for the investigation
- Informing senior Divisional/Area officers in accordance with existing policies and procedures.
- Ensuring that **records are made** in the relevant pocket books, logs and Station Diaries.

**HOMICIDE CASES** - Special care must be taken to observe the directions in The Court of Appeal case R v Florence Bish which was decided on the 28th February, 1977. The facts are these: On 31<sup>st</sup> October 1976 at about 12:30 pm two men Stanford Scott and Dermont Gayle witnessed an incident at the intersection of Princess Street and Barry Street in which the accused stabbed a man in his left breast. The wounded man was removed from the scene. Neither witness knew the injured man. At the trial of the accused for murder, the Crown led no evidence linking the man stabbed at Barry and Princess Street with the body on which a post mortem examination was performed. The appeal against conviction for murder was allowed.

All investigators must ensure that the nexus between the incident /crime scene to the Post Mortem and the identification of the body is established and proven. Ideally a police officer would escort the victim from the crime scene to the hospital or funeral home, and the same officer would then identify the body to the Pathologist at the Post Mortem. Other persons can support this nexus, although that could be more problematic when it comes to their attendance at a trial. This is also a serious issue for road traffic homicides and must be considered from the outset. (See F.O. #3211 dd. 18/12/08)

❖ *Guidelines for officers attending a major crime scene or major incident:*  
(F.O. #3270 dd. 4/2/2010)

The prescribed forms must be utilised at all **major crime scenes or major incidents** in accordance with this Policy. The following forms would be required for every major crime/incident:

| <b>FORM #</b> | <b>Description</b>                         |
|---------------|--------------------------------------------|
| SOC 1         | Scene Attendance Register                  |
| SOC 2         | SOC/FCSI Worksheet/Report                  |
| SOC 3         | Exhibit Receipt                            |
| CR 17         | Major Crime Investigators Worksheet/Report |
| CR 2          | Crime Report                               |
| LAB 1         | Laboratory Submission Form (if relevant)   |

Copies of these reports will be retained in the case file.

❖ Pre-planned Large Public Events (National Stadium, Arena etc.)

The Operational Order should include the details of the CIB role and contingency in place;

- **CIB Staff will be required to lead on any major crime investigation, relating to or following any large scale public event, and will be assigned to the local ‘designated station’ to conduct investigations, as required; -**
- *Low risk events* - Two (2) Detectives will be allocated and
- *High risk events* – Two (2) Detectives with at least two (2) other Detectives who may be detailed to work at another designated station.
- For events at the National Stadium and/or Arena this is likely to be the Stadium & Half Way Tree Police Stations.
- **On commencement of duty, the officer will report to the Ground Commander and then to the Divisional Crime Officer.** They will remain available throughout the period of duty and oversee all major crime investigations reported relating to that event.
- **Should attendance at any scene be required, they will liaise with the Ground Commander and attend when the scene has been secured.**
- **For most major events, it is anticipated that no more than four (4) Detectives will be assigned,** one at least being a Sergeant, to deal with any major crime/incident. In the Corporate Area the Flying Squad will provide additional personnel for perimeter patrols and they will act as the first support, should additional resources be required. Outside the Corporate Area the local Area Crime Officer will have a contingency in place
- Should any incident occur, requiring a Scene of Crime response, this should be initiated without delay, once the scene has been secured and if additional resources are required, the Homicide Action Team (HAT) from the MIT will provide such support.
- Further contingency support will be obtained from the MIT/Area should any major disaster/incident occur. Supervision will be provided over and above the Operational Order line of command, by the local Divisional Crime Officer and the on-call senior CIB Officer who remain responsible for all such major crime investigations.

❖ Guidelines for dealing with Unidentified Dead Bodies (F.O.#3307 dd. 21/10/2010)

In an effort to reduce the high number of unidentified dead bodies involving police investigation at morgues or funeral homes, the government pathologists have consented to give priority to these cases.

The pathologists, Dr. Dinesh Rao and Dr. K.S.N. Prasad can be contacted at the Legal Medicine Unit, 4<sup>th</sup> Floor, Kingston Mall, #12 Ocean Boulevard, Kingston; telephone number, 924-9248.

Investigators are reminded that bodies not immediately identified are to be photographed and fingerprinted forthwith.

The photograph and fingerprint will be referred to ACP CIB who will take steps to publish the photograph in the print media for possible identification.

If after thirty (30) days, the body remains unidentified, the post mortem must be done and the body buried forthwith.

In cases of sudden death where relatives refuse to attend post mortems and claim the body for burial, fingerprint and photograph are to be taken and the body buried forthwith.

## **15. Provision of Intelligence to Support Police Operatives on the Ground** *(Force Orders #3275 dated March 11, 2010)*

In an effort to provide intelligence support to police operatives on the ground, the Police Control Centres (PCCs) have been outfitted with Help Desks. Each PCC is connected to NIB by way of the JCF's private telecommunications microwave network. This facilitates controlled access to the Crime and Intelligence Management System database (SardonysCIMS©) for interrogation of a number of modules to satisfy requests that may be made from police operatives on the ground.

This database has a rich repository of policing information and can be tapped into to assist police in a number of areas:

- Missing Persons *(See also Missing Persons Investigation Policy and Handbook)*
- Deportees
- Firearm Register
- Wanted Persons *(See also JCF Wanted Person Policy)*
- Prison Release
- Custody History
- Persons of Interest
- Motor Vehicles of Interest
- Victims' Profile

## **16. Operations and Searches**

**Preparation of briefing sheet utilising IIMARC** (Intention, Information, Method, Administration, Risk Assessment & Communication)

**Preparation of a search strategy** (Clothes/weapons/cell phones, documents etc.)

**Appointment of Officer in Charge of search** (may be IO/Case Officer etc.)

**\*Appointment of an Exhibits Officer** to record what was found, when, where and by whom.

**Utilisation of an exhibits bag** (gloves, bags, envelopes, boxes, tape, exhibit seals, labels etc.)

**\*Appointment of a note taker** (to contemporaneously record questions put to support an effective search & identify 'items' found, avoiding any suggestions that this is not regarded as a formal 'interview').

**Photograph of any damage caused and any suspect items found** in the situation found (if possible) in particular firearms, large seizures of drugs & cash etc.

**Preservation and retention of 'key' items for forensic examinations** (Clothes, weapons, suspected blood/DNA material etc.)

**Identification of items for 'fast tracking' forensic submissions & communicating reasons for such to the Forensic Scientist** (i.e. Priority exhibits to identify suspects from swabs, clothing etc.)

### **Search Strategy**

**A thorough knowledge of all witness statements and other intelligence/information concerning the investigation is required BEFORE the completion of an effective search strategy.**

A search is to be undertaken in order to find articles/evidence and as such it is necessary to identify what is sought **PRIOR** to effecting a search and in particular to identify the 'significant items' required. There is no point in conducting a search unless you properly consider what is likely to be found.

The following should be considered: -

**Search Warrants** (Unlawful possession, firearms etc.) are required for each address and will be obtained by an officer who is in possession of the relevant facts.

**Securing the premises/scene/suspect** (Security cordons, Officer/public safety)

**Photography** – **STILLS & VIDEO** (under directions of Officer in charge (Silver) or Investigating Officer (IO)) **to record entry and arrest if practicable to do so, and include –**

- Condition of prisoner, in particular any existing injuries/marks (Special care if identification procedures are likely to be an issue).
- **Safety of filming officer(s) must be maintained at all times** and should resistance/violence occur filming/photography may have to be suspended.

IF relevant - General scene coverage of;

- Outside of the premises from various directions.
- Inside each room (After premises secured – prior to commencement of search and AGAIN at conclusion).

**Specific coverage of:**

- Any significant items found (\*Significant items marked) **PRIOR** to packaging and **PRIOR** to being moved (if possible to do so)
- Any damage caused (locks etc) **AND** after repair (if appropriate)

**Scenes of Crime officer** (in large operations a coordinator will be required) & Forensic Scientist (if relevant) to lead and advise on items found (forensic value) and packaging strategy, dependent on the initial assessment and in accordance with JCF policies.

**Search and seizure of exhibits**

- i. Forensic exhibits seized **MUST** be packaged as soon as possible to avoid contamination **and as such should be packaged and sealed close to the point of retrieval.**
- ii. Continuity of the exhibits is required and written records will be kept **to show the officer finding the exhibit; officer packaging and officer transporting each item found.** Wherever possible the minimum number of officers should be involved in handling exhibits and as such continuity issues will be reduced **(Finding officer to Exhibits officer/Scenes of crime should be the norm, with the Exhibits officer/Scenes of crime then conveying all the items to the Forensic Laboratory etc.)**

**Removal of security cordons** (Only after directions from Officer in charge).

**Debrief prior to removal of security cordons.**

**Identify and describe the ‘Significant items’ required to be found such as:**

**\*Human hair**

**\*Human blood**

**\*Specific Cell phones – provide descriptions** (i.e. Sony Ericsson, model T105 and colour)

**All Cell phones & SIM cards** (any phones found should be turned off and if possible the pin number ascertained from the owner/user)

**Diaries**

**Address books**

**Financial documents** (Ledgers/accounting books, bank accounts, ownership/letting of property etc.)

**\*Firearms & Ammunition**

**\*Areas damaged by gunfire** (where possible retrieve and photograph)

**\*Knives, machetes, axes, pliers etc.**

**\*Large amounts of cash**

**\*Large amounts of Drugs** (or Photograph if particular evidential value, such as in open view of all occupants)

**Computers and IT storage media** (OCID or FID can provide advice and guidance)

**Nominate Officers to the following roles and Areas of specific responsibility**

**Gold (Strategy)**

**Officer overall in charge**, not normally present at the scene, may be in a control room for major operations. He is responsible for ensuring that the activity has sufficient resources, staffing and the wider strategic issues are effectively managed (liaison with other agencies, media, community etc)

**Silver (Tactics)**

**Tactical Commander and MUST be available to take command** at an appropriate location (Control room, scene etc.) and is responsible for the tactical implementation of the overall strategy (Arrests/Searches etc.) and the effective deployment of the resources.

#### **Bronzes**

**Officer in charge of a ‘specific’ function** - Must be present and be deployed to ensure the effective supervision and oversight of staff conducting a ‘specific’ activity.

Marshalling Officer (**if large scale operation**) – (nominate)

Cell phone security/retention – (nominate)

Briefings and De-briefs – (nominate)

Security Cordons – (nominate)

Scenes of Crime Officer or Co-ordinator – (nominate)

Photographer (**Video & Stills**) – (nominate)

Arrest (**separate officer(s) for each suspect sought**) – (nominate)

Searching officers (**such as Caribbean Search Centre, Scenes of crime etc.**) – (nominate)

Financial Investigation Department – (nominate)

Community – (nominate)

Media – (nominate)

Welfare – (nominate)

## **17. Arrest Strategy**

### **17.1 Intention**

One of the primary purposes of any police force is to investigate and detect offences, which can be achieved by utilising all the legal means that exist. **Questioning suspects is one of the most important.**

The overall aim must be to provide evidence ‘*sufficient*’ to present a prima facie case in relation to any prosecution.

The current high use of ‘*Arrest Warrant’s*’ significantly reduces our investigative capability, in effect the execution of a warrant immediately ‘*charges*’ the person with an offence and as such the charged person, should then be brought before the court, forthwith.

Judges Rules limits Interviews of persons arrested on an ‘*arrest warrant*’ and breaches of such are likely to render the interview inadmissible at court; as interviews after charge (including when arrested on a warrant) can only be conducted in special circumstances.

### **17.2 Why modify the current use of Arrest Warrants?**

When a Police Officer is trying to discover whether or by whom, an offence has been committed he is entitled to question any person, whether suspected or not, from whom he thinks that useful information may be obtained. This is so whether or not the person in question has been taken into custody, so long as he has not been charged with the offence or informed that he may be prosecuted for it. (Judges Rules [1964] 1 WLR 152, 154.). It is an essential and a vital element of any investigation that we have strict adherence to this policy.

The execution of Arrest Warrants significantly limits interviews and the continuation of an investigation. Arrest is very unlikely to be the final activity before charge, as the investigation must seek to obtain evidence ‘*sufficient*’ to present a ‘*prime facie*’ case at court.

Any person who has been arrested by police is in a vulnerable situation and as such it is a requirement of the laws of Jamaica, our Constitution and other conventions, such as Human Rights, that any such person should be treated with dignity and provided basic rights to protect them from any potential abuse.

Police have a legal duty to preserve the peace and to investigate allegations of crime and as such it is essential that any person deprived of their liberty, will be provided appropriate care and dealt with expeditiously.

The arrest and detention of an individual must be justified and as such, this process will allow police to determine when a suspect has been identified and that there are sufficient grounds to effect the arrest.

**This policy does not prevent police from immediately arresting suspects when seen committing offences** and is implemented essentially for those identified after the event by an effective investigation.

### **17.3 Search Warrants**

Arrest Warrants should not be confused with Search Warrants. This policy does not alter in any way the existing requirements and arrangements for obtaining Search Warrants. Police may require the power to enter premises in search of prescribed items/property. Where police do not have existing powers (legislation or at Common Law) to enter such premises, a Search Warrant must be obtained.

### **17.4 Arrest Strategy - (Compliance with JCF Wanted Persons Policy) (F.O. #3274 dd. 4/03/2010)**

#### Circulation of Persons - Wanted or Suspected

The **IO/SIO** will, through the course of any investigation, identify persons of interest to that investigation; such persons must be identified, interviewed and eliminated at the earliest opportunity, any delay may lead to further offences being committed or witnesses intimidated. This will ensure that all activity is prioritised to effectively deal with any person of interest, whether they be a significant witness, suspect or wanted.

**Any person, for whom they have reasonable suspicion to arrest and interview for an offence MUST be circulated at the earliest opportunity as a Wanted Person in accordance with existing JCF policy.**

Arrest Warrants should not be obtained during the normal course of an investigation. Sufficient powers of arrest are available to effect the arrests and protect officers from malicious complaint/litigation for major crime cases.

**All persons should be circulated** using the following terms;

- **Wanted for questioning.** The use of these words will explain to the public that charges are not imminent and that police will be questioning the suspect when detained, in accordance with Judges Rules. The **SIO/IO** will have identified and can justify ‘**reasonable suspicion**’ for the arrest of this person. An appropriate power of arrest will have been identified **and the Detective Inspector in charge will authorise, in writing, the circulation.**
- **Suspected** (person of interest). To be used in cases where there are insufficient grounds to justify arrest and detention, although police still need to conduct interviews and develop the information available to them.
- **Locate/Trace.** Potential witnesses and other persons who may be able to provide valuable information to assist the investigation.
- **Wanted on Warrant.** Only to be used in rare and exceptional cases, such as Warrants issued by the courts (e.g. absconding) or where they have previously been arrested, interviewed and released; with new grounds identified for their arrest. (Judges Rules allows for interviews in these circumstances).

### **Powers of Arrest/Authority**

It is essential that police know their powers of arrest and in particular when they can effect these. For instance some powers are only for:-

- Felonies
- Persons found committing
- Persons who have committed the offence

**It is the responsibility of each member of the police force to know their powers of arrest and to use them appropriately.** Consideration must always be given as to whether the arrest is justified.

- **Constitution of Jamaica (Chapter 111, 15.1)**
- **Common Law**
- **Firearms Act**
- **Constabulary Force Act**
- **Dangerous Drugs Act**

### **At Common Law a policeman may arrest without warrant;**

- On his view:** When a felony, treason or breach of the peace is committed or attempted in the presence of an officer, for example murder, robbery, larceny.
- On the charge of a third person:** It is the duty of a Constable, on a reasonable charge of felony being made to him by a private person against anyone else to take the supposed offender into custody. *Hedges v Chapman* (1825) 2 Bing 523.
- On his own suspicion:** The policeman may arrest on reasonable suspicion of a felony whether a felony has or has not been committed.

If it should appear that no such offence has been committed, the arrest will be justified, provided it was made on reasonable suspicion. A Constable is justified in arresting upon a reasonable suspicion of a felony having been committed whether the reasonable or suspicion are matters



within his own knowledge or are facts stated to him by another. Police powers of arrest coincide with those of the citizen. He is thus a citizen in uniform.

**Identify all offences for which the suspect is to be arrested.** On arrest the suspect is to be told in clear language for which offences they have been arrested for and cautioned in accordance with Judges Rules. A Contemporaneous record should be made of any questions put, including those made after caution and/or arrest, where practicable to do so, dependant on the security situation at the time (safety of officers/public/prisoner).

**Judges Rules** ([1964] 1 WLR 152, 154.) - When a Police Officer is trying to discover whether or by whom, an offence has been committed he is entitled to question any person, whether suspected or not, from whom he thinks that useful information may be obtained. This is so whether or not the person in question has been taken into custody, so long as he has not been charged with the offence or informed that he may be prosecuted for it.

A contemporaneous record should also be made, in accordance with Judges Rules of any additional questions and answers: -

- To ensure an effective conduct of a search(s)
- Any observations made by the officer(s) involved.

**A nominated officer will be responsible for the prisoner's security/safety and to provide fair treatment during their detention.** Consideration should be given to using a Justice of the Peace (JP) as an independent witness during any searches/arrests. A JP should be present if the prisoner has to be removed prior to the conclusion of the search, in accordance with legislation and force policy.

**Search and seizure of exhibits as per the search strategy** and if possible this should be in the presence of the prisoner and/or a JP. Should the prisoner request an Attorney; steps should be taken to arrange their attendance.

**Suitable transport for any prisoners** should be immediately available throughout the operation in order that the prisoner can be removed from the premises to a secure police station dependant on the security situation, in such an event a JP should be obtained to be present to witness any further searches.

**Identification of other offences and arrest(s).** As the search progresses other offences may become apparent and as such the **SIO** will direct further arrest(s) as applicable and any questions put should be contemporaneously recorded in accordance with Judges Rules.

**Arrest notes and witness statements to be completed at the earliest opportunity** and the arresting officer, Scenes of Crime Officer, Search and Interview team leaders should debrief the arrest/search prior to commencement of the interview phase.

**An effective interview can only be accomplished when the officers conducting the interview know all the relevant facts.**

It is an essential and a vital element of any investigation that we have strict adherence to this policy.

## **17.5 Statements under Caution**

Judges Rules provides police with administrative directions for conducting interviews and as such describes a process that should be adopted with Question and Answer interviews appearing prior to the taking of any ‘voluntary’ statements under caution.

Such statements provide an opportunity for the investigator to record an early account from a suspect, who wishes to make a voluntary statement, after advice from or in the presence of an Attorney. Statements in such cases are best taken in simple cases where the suspect wishes to provide their own account and the facts are not complicated.

This should be considered by the investigator as having the following limitations;

- Often self serving (suspects view and not able to be challenged with probing questions)
- Provides only information that the suspect wishes to be included
- Unlikely to answer all the points identified by the investigator in an pre-planned interview strategy
- Prevents probing questions being put.

In complicated cases or a series of crimes the preferred course of action should be to conduct a Question & Answer interview rather than a Statement Under Caution. Both must be completed in accordance with Judges Rules.

#### **17.6 Benefits of an early arrest**

It is essential to effect arrests of Wanted Persons at the earliest opportunity in the interests of justice. This will allow police to gather evidence and to effect prosecutions after obtaining evidence ‘sufficient’ on which to act. Delays could lead to witnesses failing to support investigations or they may be hard to find.

Another significant benefit relates to the reduction in crime. It is a proven fact that the majority of serious criminal offences are committed by a small number of persistent offenders and as such, an early arrest and conviction will have a significant positive effect on the crime situation. This will also increase the confidence of the people in Jamaica that the police are able to effectively and efficiently investigate crime by using our powers appropriately.

#### **17.7 Intelligence Interviews**

These should NOT be ignored and should be completed AFTER charges have been laid or before the suspect is released (their release should not be delayed pending such an interview). This interview should, wherever possible, be conducted by officers NOT connected with the original investigation, such as DIU staff, for independence from the investigative process.

#### **17.8 Top Ten Lists**

Experience has shown that the maintenance of Divisional Wanted Lists assist to prioritise local activity and reduce crime. In order to develop this practice further every division should have a Wanted Person list.

Maintenance and accuracy of the lists will be the responsibility of;

- The Divisional Crime Officer for each Division/Specialist Command and
- The ACP, NIB for the National Register for Wanted Persons.

This policy will highlight the main powers of arrest; however, **it is the responsibility of each member of the police force to know their powers of arrest and to use them appropriately.** Consideration must always be given as to whether the arrest is justified and in addition are other options available, such as proceeding by summons must be considered.

- **Constitution of Jamaica**

Section 15.1.f - ....arrest on reasonable suspicion

- **Common Law**

**What constitutes a valid arrest is enshrined in the Constitution, but it is enshrining Common Law principles** – See Section 15.1f and enunciated in **Christie v Leachinsky (1947) A.C. 586** by Viscount Simonds who at page 587 outlined the following **five propositions as the test of what constitutes a valid arrest:-**

1. If a policeman arrests without warrant upon reasonable suspicion of felony, or of other crime of a sort, which does not require a warrant, he must in ordinary circumstance inform the person arrested of the true ground of arrest. He is not entitled to keep the reason to himself or to give a reason, which is not the true reason. In other words a citizen is entitled to know on what charge or on suspicion of what crime he is seized
2. If the Citizen is not so informed but is never less seized, the policeman apart from certain exceptions is liable for false imprisonment.
3. The requirement that the person arrested should be informed of the reason why he is seized naturally does not exist if the circumstances are such that he must know the general manner of the alleged offence for which he is detained.
4. The requirement that the person arrested should be informed does not mean that technical or precise language needed to be used. The matter is a matter of substance, and turns on the elementary proposition that in this country a person is prima facie, entitled to his freedom and is only required to submit to restraints on his freedom if he knows in substance the reason why it is claimed that this restraint should be imposed.

- **Firearms Act**

**Section 43(2)** *Constable conducting search under section 43 (1) may arrest without warrant any person found on premises or in place whom he has reason to believe is guilty of an offence against this Act.*

**Sections 39(3) 40(4)** *A constable may arrest without warrant any person who refuses to declare his name and address under section 39(2) or whom he suspects of giving a false name or address or of intending to abscond.*

- **Constabulary Force Act**

**Section 15:** *It shall be lawful for any constable without warrant to apprehend any person **found committing** any offence punishable upon indictment or summary conviction, and to take him forthwith before a Justice of the Peace who shall enquire into circumstances of the alleged offence and either commit the offender to the nearest jail, prison or lock-up to be dealt with according to law or to take bail by recognizance, with or without surety in such amount as such he shall direct for his appearance on such day as he shall appoint, before a court of competent jurisdiction to be dealt with according to the law’.*

**Section 16:** Any warrant lawfully issued by a Justice of the Peace for apprehending any person charged with any offence may be executed by any Constable at any time notwithstanding that the warrant is not in his possession at that time but the warrant shall, on the demand of the person apprehended, be shown to him as soon as practicable after his arrest.

**Section 18:-** “It shall be lawful for any Constable to apprehend without warrant any person known or suspected to be in unlawful possession of opium, ganja, morphine, cocaine or any other dangerous or prohibited drugs or any person known or suspected to be in possession of any paper, ticket or token relating to any game or lottery or drop pan or any game of a similar nature and to take him forthwith before a Justice who shall thereupon caused such person to be searched in his presence”.

- **Dangerous Drugs Act**

*‘Any constable may arrest without warrant any person who **has committed, or attempted to commit, or is reasonably suspected by such constable of having committed or attempted to commit**, an offence against this Act, if he has reasonable ground for believing that the person that that person will abscond unless arrested, or if the name and address of that person are unknown to or cannot be ascertained by him.’*

It should be noted that the **Road Traffic Act** provides the police with the power to stop vehicles and **Section 15 of the Constitution of Jamaica** provides powers to arrest ‘if there is reasonable suspicion that the person **has committed, or is about to commit a crime.....**’

## **18. Contemporaneous Question and Answer Interviews**

**No charges should be brought, until AFTER a formal interview has been conducted**, with an Attorney (*Suspects have a legal right to obtain free legal advice - a reasonable period of time should be permitted for them to obtain their own Attorney or for a legal Aid appointed Attorney. Only after all reasonable efforts have been made, and failed, should a Justice of the Peace be present*) in accordance with Judges Rules. The purpose of such interviews is to:

- Secure ‘best evidence’ by way of questions and answers,
- To assist to prove/disprove the involvement of that person,
- Afford the suspect the opportunity to give an early account of their knowledge/actions and
- Provide an opportunity to test the strength/reliability of any information obtained during the investigation.
- Obtain additional evidence/information relating to property/objects found in their possession, such as firearms (how they obtained the item, when, how etc.)
- Identify other persons involved in the crime or criminal activities.

*In addition, the interview may provide new information that may make an identification procedure unnecessary (Special care **MUST** be taken in any case involving ‘Identification issues’ and as such the Attorneys attached to Kingfish or other JCF CIB units **MUST** be consulted for advice) i.e.*

- The suspect may admit their identity/involvement,
- Place themselves at the scene(s)
- Provide confirmation that they are the same person described by the witness(s) (admitting same facts as outlined by the witness such as relatives, addresses, place/type of work, friends etc).

**PRIOR to any interview the Investigating officer (IO) MUST prepare an interview strategy.** This can only be completed when all the relevant facts are known. The officer preparing the strategy must consider the following points

1. Points to prove in relation to the offence for which they are investigating,
2. Information provided by witnesses,
3. Additional information and/or intelligence surrounding the offences,
4. Articles/exhibits found at the scene(s), on arrest or at other places and connected with the investigation,
5. Confirmation that this is the same person as described by the witness(s) (*Identification issues*).
6. To obtain evidence in relation to the three key elements in any investigation – Motive, Opportunity & Conduct.
7. circumstances of any linked crimes (e.g. Ballistics/fingerprint matches with other crime(s), intelligence reports linking the suspect)

All such interviews and investigations must be conducted expeditiously.

## **19. Detention Time Limits**

**It is essential that all persons who are detained should be dealt with expeditiously and within a ‘reasonable time’, as required by the Bail Act.** It is expected that all persons detained without charge should be released or charged within 24 hours of their arrest. ***Any additional detention may lead to an abuse and may be subject to legal proceedings for the detainee’s release.*** Please note Sections 50B and 50F of the Constabulary Force Act was amended to extend this seventy-two hours.

The investigation should be completed within this 24 hour period and as such the **IO** will record and retain full details of all the relevant factors affecting this detention; such as requests for attorney attendance at interviews, identification parades etc.

***In ALL cases where persons are likely to be detained without charge in excess of 24 hours*** a written report must be presented to the Divisional Crime Officer prior to this period expiring. The report must include details of the investigation, reasons for the delay, the outstanding issues and when these are likely to be resolved. This report will remain open and will be updated as directed until the person is either released or charged.

A Justice of the Peace or an application should be made to the Resident Magistrate to extend the period of custody beyond 24 hours and all matters must be fully recorded by the **IO** and supervised by the **DDI** and Divisional Crime Officer.

❖ *Prompt conduct of interviews and identification parades by police prior to charges being laid (F.O. #3257 dd. Nov 5, 2009) (amended F.O. #3275 dd. Mar 11, 2010)*

Concerns continue to be expressed by various judicial bodies and individuals, the police are not dealing expeditiously with persons held in custody. This relates particularly to delays in the conduct of police interviews of suspects and the holding of identification parades. Interviews, and if applicable, identification parades, with suspects should be conducted shortly after their arrest/detention, and in the presence of an Attorney, or where an Attorney fails to attend or is unavailable, in the presence of two (2) Justices of the Peace.

All persons arrested/detained for specified offences (*see attachment*) are entitled to free legal advice under the Legal Aid Act, although there is no legal requirement for an attorney to be actually present. However, it is an accepted practice that they should be present, and it is most desirable for such to demonstrate fairness. **Every effort should be made**, where the suspect wishes, **for an attorney to be present**.

***Commanding Officers and Investigating Officers must ensure that no there are no delays in conducting interviews and identification parades.***

**Standard Operating Procedure**

**Arrest/Detention of any person –**

- a) Where a named Attorney is requested by the suspect, or his family, immediate contact must be made by the Investigating Officer (**IO**), or the officer in charge of the lockup/station to arrange for the attorney to be present at the interview, and/or identification parade.

**OR**

- b) Where no named attorney is provided by the suspect, or his family, the Investigating Officer (**IO**), or the officer in charge of the lockup/station will make contact with local Legal Aid Clinic or a local attorney willing to take on such work, for an attorney to be present at the interview, and/or identification parade.

**NOTE** – In relation to **children** (*under the age of eighteen (18) years*) **the presence of a parent, guardian** (*person having the charge of or control of that child*), **a representative of the Children’s Advocate, Child Development Agency or a responsible adult** (*church leader, social worker etc.*) **not connected to the police must be present during the interview and/or identification parade to represent the interests of that child.**

**Arrangements must promptly be made for the interview, and/or identification parade, to be conducted within a reasonable time, and this should usually be within twenty-four (24) hours of their arrest/detention.**

Where an attorney refuses or fails to attend, the attorney should be advised that the delay is not justifiable and additional arrangements will be made for another attorney **OR** for two (2) Justices of the Peace, to be present at an appointed time and place for the interview, and/or identification parade to be conducted.

All contacts with attorneys, their representatives and/or Justices of the Peace, regarding this process, will be recorded by the **IO** and/or officer in charge in their notebooks and an entry should also be made in the relevant station diary.

It is expected that the overall process, including conducting interviews and/or identification parades should be completed within twenty-four (24) hours of a suspect's detention and this should only be extended, in exceptional circumstances, and where a 'remand' by a Resident Magistrate or a Justice of the Peace has been authorized under the Bail Act.

### **Constitution of Jamaica and Relevant Legislation**

#### ***The Constitution of Jamaica***

##### ***Chapter III,***

***Section (1) No person shall be deprived of his personal liberty save as may in any of the following cases be authorised by law;***

- f. upon reasonable suspicion of his having committed or of being about to commit a criminal offence;*

***Section (3): Any person who is arrested or detained-***

- b. upon reasonable suspicion of his having committed or being about to commit a criminal offence, and who is not released, shall be brought without delay before a court.....*

#### ***The Legal Aid Act***

##### ***Section 15: Grant of Legal Aid in Criminal Matters***

***(1) Legal aid may be granted to any person who is detained at a police station or in a lock-up ..... in accordance with such regulations as may be prescribed establishing a scheme for the provision of legal aid in such circumstances.***

#### ***The Bail Act***

##### ***Section 22: Procedure on Arrest or Detention***

***Where a person who is arrested or detained is not charged within twenty-four hours after such arrest or detention, he shall be brought forthwith before a Resident Magistrate or a Justice of the Peace who shall order that the person be released or make such other***

*order as the Resident Magistrate or a Justice of the Peace thinks fit, having regard to the circumstances:*

*Provided that where an identification parade is required in relation to that person, the person shall not be brought before a Magistrate or a Justice of the Peace but the matter shall be referred to the Magistrate or a Justice of the Peace who shall make any such order in the absence of that person.*

### ***The Judicature (Resident Magistrate) Act***

#### ***63A: Weekly enquiries by Resident Magistrates.***

*(1) A Magistrate shall make enquiries, at least once in every week, into the case of each person listed by a member of the Jamaica Constabulary Force as being detained with a view to the holding of an identification parade.*

*(2) Such member shall, in any such case, bring evidence to satisfy the Magistrate that adequate steps are being taken to expedite the holding of the identification parade.*

*(3) The Magistrate may thereafter –*

*(a) remand the detained person for such further period as is necessary to conduct the identification parade; or*

*(b) if he is not satisfied that it is intended to hold an identification parade in respect of the detained person within a reasonable time, order that the detained person be brought before a Court within twenty-four hours.*

*(4) Where a person is brought before a Court as mentioned in subsection (3), the Court shall make such order as it considers appropriate having regard to all circumstances of the case.*

### ***The Child Care and Protection Act***

#### ***Definition***

"child" means a person under the age of eighteen years

## **20. CIB Policy for all Forensic ‘Hits’ using AFIS and IBIS**

The following procedure MUST be complied with:

- 1. Technical Services Division (TSD)** identifies a fingerprint ‘hit’ using the Automated Fingerprint Identification System (AFIS), with a crime scene fingerprint/palmprint or the Ballistic unit at the Government Forensic Laboratory identifies a ‘hit’ with a shooting scene/recovered firearm using Integrated Ballistics Identification System (IBIS).
- 2.** Written notification is made immediately to the SSP, **CIB Investigation Division** (CIB Inv.) and copied to the sub officer in charge for the **Area SOC** who conducted the initial examination.



3. Technical Services Division will ensure that a 'hit' docket is completed, to include witness statements from the relevant Scene of Crime Officer(s) who submitted the mark for ballistics evidence for examination and this will be retained pending charges being laid. For fingerprint cases a new set of fingerprint must be taken when the suspect is arrested. These will be exhibited by the taking officer and submitted to TSD for the evidential 'hit' docket to be completed and returned to the relevant DDI
4. **CIB Investigation Division** will create an investigation docket and monitor the outcomes to ensure appropriate action is taken within the following timelines:-
  - i. TSD/Lab submission to CIB Investigation within 2 hours of 'hit' being identified
  - ii. CIB Investigation to send relevant investigation docket to division within 3 days
  - iii. Division to respond on outcome within 30 days
  - iv. CIB investigation can extend this subject to application and updates.
5. **The Crime Officer for the Division** concerned will report back, no later than 30 days, include:
  - a. Date and reference of crime made in Crime Diary
  - b. Whether an original case file existed
  - c. Completion of the investigative case file in accordance with Force policy and SOP's
  - d. Details of any person arrested/interviewed and
  - e. Result of the investigation and any other offences cleared up
6. When an arrest is made the new set of fingerprints (including palms) will be submitted to **TSD** for comparison against the original crime scene marks and exhibited in a witness statement by the officer taking this new set of prints.

**Fingerprints may indicate a potential suspect, witness or person of interest who may have had legitimate access to a certain place/article. The investigation must consider the point/place that the prints were found and the type/circumstance of the offence.**

**Investigators MUST NOT DISCLOSE the existence of fingerprint evidence at any stage of an investigation to a suspect or his Attorney.** Should an arrest be made the suspect should be interviewed and a NEW set of fingerprints (including palmprints), utilising the police powers under the Fingerprint Act (Appendix N), must be taken for comparison with the original crime scene prints. This will then prevent a previous arrest/conviction from prejudicing any trial and goes to the root of fairness and legal precedent rulings in our case law.

## **21. Statistical Data collection and accuracy**

### **New reporting system** (April 1, 2010)

1. Statistics Department will supply an ACCESS database (preformatted to record all the required data and with drop down menus to minimise keying in data and improving accuracy) to each Division. In due course, computers and internet access at stations will improve the process, as the data will then be entered directly at the station level.

2. A daily return will be made by each Division by 6:30am to statistics using email, (or fax if the internet is not working) by the Divisional registry staff.
3. A similar ACCESS database will be used WEEKLY for wanted/missing persons and MONTHLY for all other crimes (excluding Major Crimes which is a daily requirement).

STATISTICS will email a daily briefing report for all senior officers. In addition, each DIU will have direct access to the database and this will improve local crime intelligence and data collection.

*Reporting process:*

- Each Division will record DAILY on the access DATABASE all reported major crime and submit electronically to statistics by 6:30am
- Statistics to circulate DAILY to the High Command all murders, shooting, robberies and rape offences
- To be followed with WEEKLY wanted/missing persons reports and other MONTHLY crime returns

❖ *Implementation of Crime Recording System*

Force Orders #3272 dd. Feb 18, 2010 (amended F.O. #3273 dd Feb 25, 2010)

In accordance with the Crime Reporting and Case Management Policy of the Jamaica Constabulary Force, the Crime Recording System will be implemented in all geographic police divisions effective March 1, 2010. The Crime Recording System will be managed by Divisional commanders through the Divisional Crime Officers.

All geographic divisions will be issued with CR2, CR4 and CR5 booklets to implement the system. Other forms will be issued when they become available.

Commanding Officers are to ensure that all CIB 1 forms up to February 28, 2010 (*midnight*) are up-to-date and submitted since the new policy and forms will take effect and be utilised as of March 1, 2010.

Crime Recording Recording/Investigations

The following is to be noted as it relates to crime recording/investigations:

- Marine Division will be managed by Kingston Western Division
- Ports Division (N.M.I.A.) will be managed by Kingston Eastern Division
- Ports Division (D.S.I.A & Freeport) will be managed by St. James Division
- Non geographic divisions will comply with the policy and ALL crimes reported directly to them will also be recorded within the division covering the identified offences.

Where offence locations are not known or cannot be ascertained a report will be made and submitted by the receiving division/specialist formation and will be recorded as a crime by that receiving division/specialist formation (eg fraud where exact venue cannot be identified the receiving Division, Area Fraud Squad or HQ Fraud Squad will record the crime and ensure the Force policies relating to investigations are complied with).

## Visit to Pilot Station

Divisional Case Registry Personnel (*Vetting Officers, DDIs, Desk Officers*) who have not visited the pilot division (*Kingston Eastern Division*), are to be sent to get an appreciation as to how the system works in order to better enable them in guiding other divisional personnel in implementing the system. Arrangements can be made by contacting the following persons:

- Divisional Commander at 928-1455,
- Divisional Crime Officer at 938-1112,
- Registry Manager at 938-4369

The new computerised system is being developed and will utilise the new process hence this paper implementation will facilitate an easier transition to the electronic process. Out stations will most likely have to continue using the paper forms for some time.

## **22. Major Criminal Investigation Involving the use of Communication Devices**

### **Communications Intelligence Unit (CIU)** (*See F.O. #3289 dd. 17/07/2010*)

With the continual rise of cell phone use to facilitate criminal activity in Jamaica, the Communications Intelligence Unit (CIU) was created with a view of providing a tool for investigators that will corroborate other existing evidence.

The CIU is the unit through which the JCF implements the Interception of Communications Act 2002, the Interception of Communications (Amendment) Act 2006 and the Telecommunications Act 200 with respect to acquisition, disclosure and evidential use of communications data.

The CIU located at NIB/Kingfish is the single point of contact in the JCF through which all requisition for Call Data Records (CDR) is made. These records are normally related to major criminal investigations involving the use of communication device wired or wireless. Call data record is telephone information about a subscriber or user that will assist the investigator to show association and likely location of a subject.

The CIU analyses requested call data record from a communication service provider (eg LIME) and prepare the findings in a statement format for giving evidence in court.

By virtue of a schedule of offences, the CIU is guided as to when investigators should use this service.

The following are steps that should be adhered to when applying for call data records:

- Proper attribution (at least three) of cell phone must be done
- An immediate application for call data record must be made once investigation of a crime involving a cellular device commence

- All application for CDR must be sent electronically through the divisional DIU.

**Note:** Investigators must treat all communication devices in a similar fashion as any other forensic exhibit. Handle with the glove, label and send to the CIU as early as possible.

### **Digital Forensic Unit (DFU)**

The Digital Forensic Unit (DFU) provides technical support for the CIU.

Call data record provided by Communications Service Providers (CSP) is validated by the DFU for its authenticity. The DFU services assist all major crime investigation while corroborating existing evidence.

Field surveys conducted by the DFU assist investigation by placing a subject in the general area of a crime scene or location of interest. Travel or location patterns of a subject can be revealed by the expertise of the DFU.

## **23. After Charge - Revisit other cases**

Whenever a suspect has been charged, with a serious crime a specific review must be undertaken by the Divisional Crime Officer to identify additional charges. This review should consider additional cases that may have been linked to this person or for which intelligence suggests may have committed by them.

When a suspect has been detained and subsequently charged with a serious crime, it is likely that the confidence of communities and in particular witnesses will increase in the knowledge that the suspect will remain in custody. Special attention must be made during this process to identify additional charges and obtaining new witness statements from potential witnesses.

Additional clear ups can also be made and this is a very important and visible signal of our practicable support to vulnerable communities, and the families affected by such crimes. This will increase community support and strengthen our interaction with the public by securing as many charges as possible against such violent offenders.

## **24. CIB Registers, Forms and Files**

The following registers and forms will be used within each division and it is the responsibility for each Divisional Superintendent to ensure management, inspections and supervision systems are in place to ensure compliance;

### **NEW SCHEDULE OF REGISTERS (CIB)**

1. Crime Diary
2. Movement Diary
3. Wanted Persons Register monitored by CIB/DIU
4. Persons reporting on condition of bail (head stations)
  - CIB Guardroom/Reception Areas
  - CIB (sub stations)

5. Stolen Motor Vehicle Register monitored by CIB/DIU
6. Stolen and Recovered Firearm Register monitored by CIB/DIU
7. Missing Persons Register monitored by CIB/DIU
8. Police Gazette (File)
9. Force Orders (File)

## **REGISTRY RECORDS**

- ✓ Divisional Crime Report Register – CR2 (*Replaces CIB1 Book*)
- ✓ Case Management Book
- ✓ Case File Movement Register
- ✓ Case File Register/Assignment Book
- ✓ Court Case Register
- ✓ Witness Data Register
- ✓ Cases before Court Register
- ✓ Court Attendance Register

The following files will be maintained within the investigation Case File: -

### **Master file –**

- **File note.** To be updated regularly to record all activity e.g. investigation activity, line of enquiry, case progress, date of court appearance statements/documents served (detailing witness names and officers details undertaking service).

All materials served (e.g. statements, copy documents etc.) **requires a written record to be made and a receipt obtained** recording what has been served, when and to whom, including name of the Court Clerk/lawyer. After committal proceedings the papers will go direct to the DPP's office against receipt, together with a record being made to record the date/time etc. (Advice of SIO/DPP to be sought regarding any contentious issues e.g. witness protection etc.)

- **All relevant items listed in the checklist** (Appendix H) e.g. Statements, contemporaneous Question & Answer records, exhibit list (Relevant & Non Relevant) etc.

### **Master Exhibits file –**

- **Index of all exhibits** (Relevant and Non Relevant)  
Original non-bulky exhibits to be held securely in a file e.g. Post Mortem reports, photographs etc.  
Bulky exhibits are to be listed, including a full description and the location where stored is to be recorded.

The **Case Officer (CO)** is responsible for assisting the **IO** to **ensure** that the file is maintained in good order and that all relevant material is properly dealt with in accordance with existing practices and procedures.

A copy of all material obtained will be maintained on the Master Case File and the **IO** will be responsible for overseeing that this is correctly carried out. Where a **Prosecutions Liaison Officer (PLO)** is appointed (*Appendix H*) they will provide advice, support and guidance to the **CO**, nevertheless the overall responsibility always rests with the **IO**.

The nominated **CO** must make regular reviews of all ongoing prosecutions, **IO** in their absence and witnesses will be fully informed of key developments, at the earliest opportunity.

A professional approach will ensure that all case files/prosecutions are conducted without undue delay to minimise the risks posed to victims, witnesses and justice overall. This can only be achieved by the **CO** presenting a complete and regularly updated set of case papers, together with frequent liaison with Crown Counsel and prosecution witnesses, including police officers.

The **IO** and **CO** roles may be undertaken by the same officer although clear lines of responsibilities must be understood and managed when the staff are dealing with numerous Major Crime investigations. Often an **IO** will appoint a junior or less experienced officer as the **CO** to develop their skills, such as an Aide or Assistant.

**A schedule of approved and authorised CIB forms is at Appendix G and must be utilised as shown. Strict adherence is required.**

## 25. Case Files

### ***Minimum Standards***

All case files should be completed to the following Minimum Standard:

- Compliance with the case file check list (*Appendix H*).
- Working closely and complying with the ***Investigating Officers (IO)*** or ***SIO***'s instructions, in the first instance, and then ensuring that the Master Case File is maintained with ALL the original statements, by providing copies of all statements/documents etc. where these are requested or required elsewhere.

Where charges are laid or legal advice is sought the initial submission to the Clerk/DPP will include **copies of the original written statement(s)** together with typed copies; schedule of exhibits, a brief summary of the facts, together with the identification of any other issues/aspects that may require advice.

**Charges only to be made AFTER** advice from ***IO/SIO/Attorney*** **AND** after a formal interview (*Contemporaneously recorded questions and answers*) has been conducted.

**Once an interview has been conducted a FURTHER review will be required** to ensure that further questions are not necessary **PRIOR** to any charges being made.

### **Original statements and case file**

**The DDI will retain**, within the Registry, **all original statements and case files**. When requested by a Clerk, RM or the DPP the original statement(s) will be supplied, against a written receipt for such.

### ***REMAND/BAIL PROTOCOL (F.O. #)***

The relevant form (CR 14) must be used for all cases where an objection to bail or conditional bail is sought (*see Bail Act excerpts at Appendix K*);

### **Charge:**

- Remand/Bail form CR 14) to be completed by investigating officer and circulated as shown at item 20 (i-iv) of the form

- The DIU in the division where accused is charged will prepare profile on accused including bio-data and photograph.

### **Bail Granted**

- The Sub-Officer in charge of the Court where the bail is granted will submit the Remand/Bail form with all the conditions noted on the form (in quadruplet) to the DDI who will circulate same in accordance with item 20 (i-iv) of the form.
- The Divisional Officer in whose area the accused resides will cause the address given by the accused on bail to be verified and their DIU to maintain all the relevant data.
- The accused when reporting on condition of bail or door step curfew should present at all times valid identification.
- When reporting on bail, the accused should present this ID to the Sub-Officer on duty who will inspect same and record the particulars of the person reporting on condition of bail.
- Regular visits should be made by the Sub-Officer on duty to the residence of the accused during curfew hours and the necessary records made of the visit in the station diary.

### **Breaches of Bail Conditions**

- Any breach of the bail condition will be recorded. The accused should be taken into custody and the necessary file submitted to the court, along with a new application for remand.

### **Circulation**

- i. Prosecutors
- ii. Case File at Station
- iii. DIU/NIB
- iv. Station where accused must report (attached photograph)

## **26. Prosecution Management**

To ensure police prosecutions are expeditiously and effectively conducted, a new role of Prosecution Liaison Officer (**PLO**) has been identified and this role will assist Investigating Officers (**IO**) and the Divisional Detective Inspector (**DDI**) to ensure police prosecutions are properly conducted, on behalf of the Divisional Commanding Officer, who remains the person with overall responsibility for all police prosecutions within their area of responsibility.

Discussions on this process have been undertaken with our partners within the criminal justice system and these arrangements are supported by them, provided they remain effective and improve the delivery of justice.

Regular and frequent contact is to be maintained with all witnesses, victims (or their families) and a written record will be made by the IO/PLO detailing the contact made and this record shall be retained within the divisional case file,

Updating the witnesses on the progress of cases at key stages (*arrests, charges, court appearances etc.*), whilst continually assessing the risks posed to them and their availability to attend court to

give evidence, is essential. This includes police officers and all Scene of Crime and other specialists who are witnesses in the case.

**Prompt action will be required to complete all outstanding actions, statements etc. and to ensure that the case file is completed and regularly reviewed.**

Effective communication with the Clerk at the Resident Magistrates Court and Crown Counsel for Circuit and Gun Court cases will be necessary and a fully briefed officer will be required to appear **at all hearings** to ensure that the police are properly represented and any applications, such as bail or outstanding issues, such as trial dates etc. are fully addressed.

In cases where a **PLO** has been appointed the **IO** retains full responsibility for the case and they should utilise the **PLO** to undertake activity on their behalf, in particular attendance at court for mentions, Plea and Case Management Hearings etc. **PROVIDED** the **PLO** has been fully briefed and the outstanding actions are being dealt with expeditiously.

This will then allow the **IO** to undertake further investigative enquiries and to promptly address all outstanding actions required to ensure an effective prosecution is made.

**The IO should only attend court for a known bail application and for any trial date(s).**

### **JCF CIB Legal Advisors**

**Rank – Various**

#### **Role**

- To advise and guide the ACP CIB, the ‘specified’ CIB Divisional Commander and JCF investigators, on all legal issues relating to criminal investigations and operations.
- To research and consider all legal issues/implications relating to criminal investigations, or innovative investigative methods being or intended to be used by JCF personnel.
- To attend meetings, case conferences and court hearings (*only for Attorney-at-law*), as the representative of the ACP CIB, specified CIB Divisional Commander, *Investigating Officers* and the *Divisional Detective Inspector*, as required, to assist effective investigation/prosecution of cases.
- To liaise with the DPP, Crown Counsels and the Clerks, as required, to address any legal issues or to share best practice.
- To provide an immediate update or report to the *ACP CIB*, specified CIB Divisional Commander, *DDI/IO* and any other person concerning any action/issue identified that should be resolved or dealt with.
- To complete and oversee all requests made in a timely way.
- To monitor investigations, where advice and guidance has been given, prioritising those where new or unusual activities or techniques are being used.
- To ensure compliance with legislation, JCF policy and guidelines; such as health and safety of all staff, visitors and the public is maintained at all times.

Reporting to the ‘specified’ CIB Divisional Commander and indirectly to ACP, CIB.

#### **Responsibilities**

Regular attendance at all meetings, as required, to support the investigation of crime and to ensure effective prosecutions.



Review case files with the DDI/IO, promoting continuous improvement and development to ensure a prompt and thorough prosecution is achieved.

Ensure effective communication and record keeping is maintained, both internally and externally with other units/commands and partner agencies, to ensure that all case files and other related records are accurate and that best practice is identified and shared.

Identify and recommend developmental opportunities for staff; such as additional training, support and identifying new opportunities to broaden their knowledge, skills and capabilities.

Recommend staff for appropriate rewards and to acknowledge success and high performance from staff to ensure a positive performance culture and ethos is implemented *e.g. Commendations, new personal development opportunities etc.*

Deal promptly with any issues/situations that are likely to affect performance and to communicate effectively with the appropriate units/commands/agencies involved, at an appropriate level to improve performance.

## **27. Witness Protection**

Special care must always be taken by the **CO/IO/SIO** in all cases to fully identify and assess the risks posed to any witness. This must be under constant review and in cases of difficulty the **Area Crime Officer** must be contacted.

In cases where the witness may require entering the Witness Protection Programme, application on the prescribed forms must be made at the earliest possible opportunity through **ACP CIB**. This will ensure that the necessary arrangements can be made and the witness is able to be closely monitored during the investigation.

Witnesses do not always require or wish to be involved in the programme, so the **CO/IO/SIO** must ensure that appropriate advice/guidance is provided to all witnesses. Statements should not include personal details which are not relevant to the evidence the witness provides (including addresses, telephone numbers, family details, schooling etc.).

‘Exposure’ of a witness to the suspect (or their Attorney) may increase the threat level for the witness and again particular care must be taken when this occurs to fully identify and assess the threat levels (such as at time of taking witness statement, attendance at identification parade, disclosure of the statement to Clerk at RM court or DPP) and personal data which is not relevant to the investigation should not be recorded within the statement.

Special arrangements can be made to protect vulnerable witnesses, at an early stage of an investigation, to prevent their true identity from being revealed. A pseudonym can be assigned and used by a witness, as permitted in the Witness Protection Act and the relevant procedure must be followed. Where a pseudonym is intended to be used the Divisional Crime Officer **must** be consulted and if possible the DPP.

## 28. Case Conferences *(See Appendix I)*

The liaison between investigators and Crown Counsel is paramount in securing a conviction at court and can only be accomplished by effective communication, presentation of quality paperwork and with full disclosure of all the facts. This may take place PRIOR to any charges being laid and as such records of all such meetings must be **kept**, together with any actions by the **IO OR CO**. It is the responsibility of the **IO** to ensure that this conference takes place when required and without delay.

**The purpose of this conference is to ensure that all issues likely to affect the trial are identified and fully discussed, with prompt action taken to resolve them prior to any trial.**

The issues to be discussed will include: -

- Charges laid
- Witness protection and other factors affecting witnesses and their evidence (*such as conflicts in their evidence with other witnesses or known facts*)
- The actual order that prosecution Witnesses for the trial will be called (*to avoid unnecessary exposure and inconvenience*).
- What exhibits will be used e.g. the relevance of the contemporaneous Question & Answer records.
- Any other factors that could affect an effective trial.

## 29. Autopsy Conference

### **Definition:**

A conference consisting of Forensic Pathologist, Investigation Agencies (Police, MIT, BSI, Magistrate, Coroner, etc), Forensic Scientist and Prosecutors to debate, analyse the outcome of an investigation or scientific findings in Forensic Cases (Accident, Suicide, Homicide and Sudden Deaths) where facts may be disputed or are complex.

### **AIM:**

- To discuss the Forensic Case and overcome any issues related to the Death Investigation.
- To uphold the professionalism and team work concept within the Criminal Justice System.
- To achieve the highest standards.
- To avoid criticism from the media, politicization, victimization of the personnel involved within the criminal Justice system.

### **Who can Participate?**

- The Pathologist who conducted Postmortem examination
- The Investigating Officer
- Forensic Scientist

- Prosecutor/Government Legal Representative or any other persons who can assist the process

### **What cases qualify for Autopsy Conference**

Any case wherein there is major discrepancy in the Investigation Officer's findings and/or the Pathologist's findings; including any second autopsy or investigative/forensic review.

### **Who can request the Autopsy Conference?**

Autopsy Conference on demand;

- **Police** - Investigating Officer through the respective Assistant Commissioner of Police or Deputy Commissioner of Police
- **Pathologist** - through the Director, Legal Medicine Unit
- **Scientist** - through the Director, Forensic Laboratory
- **Clerk/Crown Counsel** – through the Director of Public Prosecutions
- **Any other party/interest group** - after consultation and through one of the above

### **Timescale**

To be formed without undue delay and for minutes to be taken and retained for disclosure as required.

## **30. Media Strategy**

The media strategy will be led by the **Divisional Manager** or their senior officer on duty. As investigations progress, a review of the lead must be undertaken, in cases of difficulty or in high profile incidents the Director of Communications should be consulted without delay.

Specific care MUST be taken concerning any press release after charges have been made and the **SIO/Divisional Manager** should always be consulted prior to any release.

At all stages of a prosecution, an update will be provided to the CCN representative. This is to provide accurate and timely information should any requests be made and to ensure that the media strategy is effectively implemented. All the activity of the Taskforce should be harnessed in a positive representation of the activities being undertaken by the staff.

### Post trial press release

A brief overview of the case will be prepared for the post trial media release in consultation with the **SIO** and the CCN representative. The media release will be updated by the **CO** or **IO** to include all the significant events identified during the investigation/trial, together with the outcome(s) (*e.g. support provided to secure witnesses, key events, degree of violence used, new investigative methods used etc.*) to provide a positive message for the public/police interest.

## **31. Community Action Plan**

Insert name of community/location

**Strategy:** To implement/develop new initiatives in the community by providing a multi agency led intervention programme to deliver community improvements.

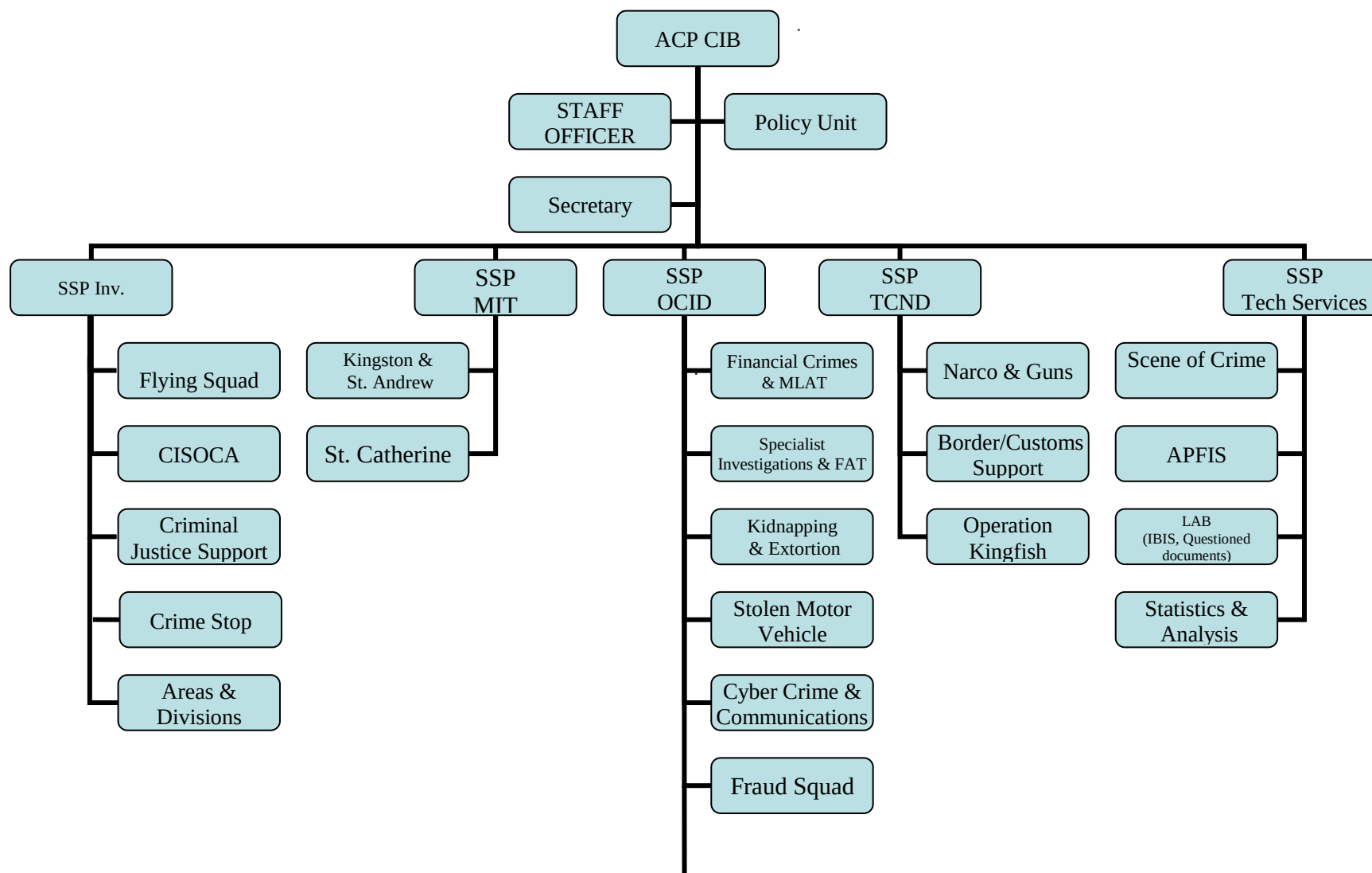
**Describe events/incident/crimes that have brought the community to notice**

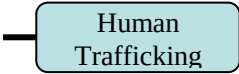
This document proposes a number of tasks in order to;-

1. Identify, evaluate and research all information / intelligence and thereafter locate and detain those who seek to control the community through fear and to disrupt with their criminality.
2. Identify what additional community intervention is required
3. Identify a multi agency action plan and engage partners to deliver this.

**The main aim will be to restore a lawful and peaceful environment and to improve the community for all of the residents.**

- Task Intelligence assets to provide historical and current intelligence of the criminal elements in this community.
- Acquire all intelligence from existing ongoing investigations eg. *(Name Investigations or details of incidents)* and others *(name crimes)* investigated elsewhere.
- Identify local community leaders or community elders and other key agencies/organisations for inclusion.
- Identify the Socio – economic needs of the community and identify partners that can assist including possible funding streams.
- Identify key issues that can be improved to enhance the community.
- Consider the impact of any operational deployment on the existing high profile cases and consider risks of such to the community through consultation with respective SIO's and the Divisional Manager.
- Identify strategic targets and formulate a strategy and an action plan to provide improvements.
- Market the strategy through an effective media strategy.

Criminal Investigation Branch Structure *(Force Orders #3232 dated 14/5/2009)*



Human  
Trafficking

**Post:** Area Crime Officers (*Force Order#3229 dated 23.4.09*)

**Rank:** **Superintendent/Senior Superintendent**

**Accountable to:** Area Commander (*directly*)  
ACP i/c CIB (*indirectly*)

**Role:** **To exercise oversight and ensure adherence to legislation, Force Policy & procedures for all crime investigations conducted within the Area.**

**Responsibilities:**

- To ensure that all crime, allegations and reports are correctly recorded and thoroughly investigated in each Division on behalf of the Area Commander.
- To ensure that all crime management activities within the Area, are effectively dealt with and in compliance with investigative standards, Force Policy and practices.
- To implement the Area Crime Strategy and linked plans, on behalf of the Area Commander.
- To manage and account for all CIB staff attached/working in Area Crime Management activities together with any additional police/civilian staff so assigned and thereby ensuring compliance with investigative standards, Force Policy and Legislation.
- To ensure that all resources, equipment and staffing in the Area are sufficient for effective and efficient crime investigations and operations.
- To personally review critical crime investigations likely to be of national/international interest occurring within the Area on behalf of the Assistant Commissioner of Police incharge CIB and to implement effective media briefings & appeals for information, in such cases.
- To conduct monthly inspections, of at least one critical area of activity, within each division in the Area, and at one Area/team/unit, thereby addressing any shortcomings and promptly reporting the findings to the commanding officer of the Division, Area and CIB Headquarters.
- To lead and manage on all cross border crime investigations/operations, when same is beyond the capability of a single division, ensuring sufficient resources and staffing are provided. (Cross border 'Area' activity will be assigned, as required by ACP CIB)

- To monitor and frequently revisit critical areas/issues identified as requiring improvement, and to provide advice, guidance and a written action plan to resolve same. The findings are to be promptly reported to the relevant Division and Area as also CIB HQ.
- To monitor all CIB staff activities and any abstractions from investigative duties within the Area and to promptly report any that **MAY** adversely affect performance to the Area Commander and Assistant Commissioner of Police in charge CIB without delay.
- To ensure that all the skills of all members of staff are fully developed, by providing developmental opportunities under close supervision and with management support.
- Review and identify additional training needs to ensure continuous development and improvements are made.
- To report promptly to the Area Commander and CIB Headquarters on all issues affecting or likely to affect crime strategies, performance or investigative standards and to ensure CIB staff across the force are provided with examples of best practice and good performance
- Any other assignments as may be directed by the Commissioner of Police



**Roles and Responsibilities of Divisional Crime Officer**

|                 |                                                                                                                                                          |
|-----------------|----------------------------------------------------------------------------------------------------------------------------------------------------------|
| Post:           | Divisional Crime Officer                                                                                                                                 |
| Rank:           | <b>Deputy Superintendent of Police</b>                                                                                                                   |
| Accountable to: | Divisional Commander ( <i>directly</i> )<br>Area Crime Officer ( <i>indirectly</i> )                                                                     |
| Role:           | <b>To exercise oversight and ensure adherence to legislation, Force Policy and Procedures for all crime investigations conducted within the Division</b> |

**Responsibilities:**

- To ensure that all crime allegations and reports are correctly recorded and thoroughly investigated in the Division on behalf of the Divisional Commander
- To ensure that all crime management activities within the Division are effectively dealt with and in compliance with investigative standards, Force Policies and Standard Operating Procedures
- To implement the Divisional Crime Strategy and link plans on behalf of the Divisional Commander
- To manage and account for all CIB staff attached/working in Divisional Management activities together with any additional Police/Civilian staff so assigned and thereby ensuring compliance with investigative standards, Force Policies and Legislation
- To ensure that all resources, equipment and staffing in the Division are sufficient for effective and efficient crime investigations and operations
- To personally review critical crime investigations likely to be of National/International interest occurring within the Division on behalf of the Commanding Officer and to implement effective media briefings and appeals for information, in such cases
- To conduct monthly inspection of at least one critical area of activity within the Division, thereby addressing any shortcomings and promptly report the findings to the Commanding Officer, and submitting a copy to the Area Crime Officer
- To monitor and frequently revisit critical areas/issues identified as requiring improvement, and to provide advice, guidance and a written action plan to resolve same. The findings are to be promptly reported to the relevant Division and Area, as also CIB Headquarters
- To monitor all CIB activities and any abstractions from investigative duties within the Division and to promptly report any that **MAY** adversely affect performance to Divisional Commander and Area Crime Officer without delay

- To ensure that the skills of all members of staff are fully developed by providing developmental opportunities under close supervision and with management support
- Review and identify additional training needs, to ensure that continuous development and improvements are made
- To report promptly to the Divisional Commander, Area Headquarters and CIB Headquarters on all issues affecting or likely to affect crime strategies, performance or investigative standards and to ensure CIB staff across the Area, are provided with examples of best practice and good performance
- Any other assignments as may be directed by the Commissioner of Police

**Roles and Responsibilities of the Divisional Detective Inspector (DDI)**

**Post:** Divisional Detective Inspector

**Rank:** **Detective Inspector**

**Accountable to:** Divisional Crime Officer

**Role:** **Responsible for the effective Case Management of all criminal investigations and reports made.**

**Responsibilities**

- Report promptly to the Divisional Crime Officer on all matters of crime coming to his attention
- Manage and oversee all crime investigations on behalf of the Divisional Crime Officer in accordance with the Divisional Crime Strategy and the JCF Policies and Standard Operating Procedures
- To ensure that all case files are properly prepared and vetted for submission to the Crime Officer and Clerk of Courts/DPP
- Ensure the proper classification and recording of all crimes
- Identify and promptly report welfare, disciplinary and training matters detected to the Divisional Crime Officer
- Assign cases for investigation to CIB staff for major crime and regular officers for other crimes and review investigations on behalf of the Divisional Crime Officer
- Cultivate informants; identify criminal haunts and habitual criminals in the Division
- Visit scenes of all major crime of a serious nature as necessary
- Keep close liaison with the Clerk of Courts for the Division to ensure the smooth process of cases and to hold frequent meetings
- Attend and chair the Divisional Court User Group meetings
- Ensure that members attend court punctually and all prosecutions are expeditiously undertaken and supported by all staff
- Hold weekly lectures with CIB personnel during which the Force's directives are disseminated and the strategic goals and objectives are reinforced
- Ensure that members of the CIB staff are kept abreast of investigation techniques and the best methods are practiced
- Ensure that punctuality and good deportment is maintained
- Ensure that Crime Returns are properly prepared for early submission
- Any other duties that may be given by the Commissioner of Police

**Prosecutions Liaison Officer (PLO)**  
(Force Orders #3272 dd Feb 18, 2010)

**Rank – Sergeant**

**Role**

- To lead and advise on all issues affecting police prosecutions.
- To manage and support the **Investigating Officers (IO)** in all post charge cases investigated by the **division/unit**, on behalf of the **Divisional Detective Inspector**, utilising all available resources and utilising a multi agency approach.
- To attend ALL court hearings, at the designated court, as the representative of the **IO** and the **DDI** and to undertake close liaison with Clerks of the Court, Crown Counsel, DPP's office and any other relevant persons to ensure that cases are dealt with expeditiously, avoiding delays and securing convictions.
- To provide immediate updates to the **DDI/IO** all witnesses after each court hearing, ensuring that the court is updated regarding the availability of all witnesses.
- To monitor and oversee the timely completion of all outstanding evidence, certificates etc. required to complete the file.
- To monitor all bail applications and ensure that any objections are presented and if conditional bail is granted ensure that those conditions are monitored and updated.
- To ensure compliance with legislation, Jamaica Constabulary Force policy and guidelines; such as health and safety of all staff, visitors and the public is maintained at all times.

**Reporting to the Divisional Detective Inspector (DDI)**

**Responsibilities**

Regular attendance at all divisional/unit and court meetings, as required, to support the prosecutions role.

Review all prosecutions with the **DDI/IO**, promoting continuous improvement and development to ensure a prompt and thorough prosecution is achieved.

Ensure sufficient resources are available/allocated for each activity/prosecution undertaken and if necessary report any issues to the **DDI/IO** at the earliest opportunity.

Ensure effective communication and record keeping is maintained, both internally and externally with other units/commands and partner agencies, to ensure that all case files and other related records are accurate and that best practice is identified and shared.

Identify and recommend developmental opportunities for staff; such as additional training, support and identifying new opportunities to broaden their knowledge, skills and capabilities.

Recommend staff for appropriate rewards and to acknowledge success and high performance from staff to ensure a positive performance culture and ethos is implemented *e.g. Commendations, new personal development opportunities etc.*

Deal promptly with any issues/situations that are likely to affect performance and to communicate effectively with the appropriate units/commands/agencies involved, at an appropriate level to improve performance.

**Roles and Responsibilities of the CIB Station Vetting Sub-officer**  
(Force Orders 3259, 19/11/2009)

Post: **CIB Station vetting sub-officer**  
Rank: **Detective Sergeant/Corporal**  
Accountable to: Divisional Detective Inspector (DDI)  
Role: Responsible for the effective case management of all criminal investigations and reports made within the Stations' area of responsibility.

**Responsibilities**

- Report promptly to the Divisional Detective Inspector & Officer in Charge of the station on all matters of crime coming to his attention.
- Vet and oversee all crime investigations on behalf of the DDI in accordance with the Divisional Crime Strategy and the JCF Policies and Standard Operating Procedures.
- To ensure that all case files are properly prepared and vetted for submission to the DDI and the Clerk of Courts/DPP.
- Ensure the proper classification and recording of all crimes.
- Identify and promptly report welfare, disciplinary and training matters detected to the DDI and the Officer in Charge of the station.
- Review all crime investigations committed within the stations area of responsibility including those allocated to CIB divisional staff investigating major crime.
- Cultivate informants; identify criminal haunts and habitual criminals in the division.
- Keep close liaison with the Clerk of Courts for the station to ensure the smooth process of cases and to hold frequent meetings.
- Attend the Divisional Court User Group meetings.
- Ensure that members attend court punctually and all prosecutions are expeditiously undertaken and supported by all staff.
- Hold weekly crime lectures with station personnel during which the Force's directives are disseminated and the strategic goals and objectives are reinforced.
- Ensure that members of the station's staff are kept abreast of investigation techniques and the best methods are practised.
- Ensure that punctuality and good deportment are maintained.
- Ensure that Crime Returns are properly prepared for early submission.

# CIB Forms

Appendix G

| FORM NO.         | CONTENTS                                                                                                                                                                                                                                                                           |
|------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>CIB Forms</b> |                                                                                                                                                                                                                                                                                    |
| CIB 1            | <b>Replaced by CR 2</b>                                                                                                                                                                                                                                                            |
| CIB 2-1          | <b>Replaced by FP 01</b>                                                                                                                                                                                                                                                           |
| CIB 2-2          | <b>Replaced by FP 01</b>                                                                                                                                                                                                                                                           |
| <b>CIB 2-3</b>   | For taking of elimination fingerprints at scenes of crime and for persons wishing to have their fingerprints taken for obtaining travel permits, firearm application etc.                                                                                                          |
| <b>CIB 3</b>     | Confidential Report form                                                                                                                                                                                                                                                           |
| CIB 4            | <b>Replaced by CR 12</b>                                                                                                                                                                                                                                                           |
| <b>CIB 5</b>     | <b>Supplied by the prisons</b> , setting out offence, data of conviction, place of trial and the sentence of a person sentenced to imprisonment for a crime. This form is to be carefully checked against the CIB 4 or CR 12 to ensure accuracy concerning data of the conviction. |
| <b>CIB 6</b>     | Conviction Sheet, setting out particulars of all conviction recorded against a person. This form is presented to the Judge or Magistrate after prisoner has been found guilty and helps in accessing the sentence to be imposed.                                                   |
| <b>CIB 6A</b>    | Particulars of convicted persons are recorded on this form which assists in classification in the modus section.                                                                                                                                                                   |
| <b>CIB 6B</b>    | Form sent to the Courts from the Criminal Records Office stating that a prisoner has no previous conviction.                                                                                                                                                                       |
| <b>CIB 6C</b>    | This form takes the place of covering minute and is attached to Form 6 for presentation to the Courts.                                                                                                                                                                             |
| CIB 7            | <b>Replaced by CR 12</b>                                                                                                                                                                                                                                                           |
| CIB 8            | <b>Replaced by CR 18</b>                                                                                                                                                                                                                                                           |
| <b>CIB 9</b>     | Form accompanying exhibits sent to the Fingerprint Bureau for examination for fingerprints.                                                                                                                                                                                        |
| <b>CIB 11</b>    | Descriptive form accompanying CIB Form 2 – 1 or 2 – 2 sent to the Fingerprint Bureau for search before trial.                                                                                                                                                                      |
| <b>CIB 12</b>    | Form accompanying CIB forms to the Fingerprint Bureau after trial. CIB 2-1 or 2-2 and 4 replaced by FP 01 and CR 12 respectively.                                                                                                                                                  |
| <b>CIB 16</b>    | Police Certificate. This must be in triplicate                                                                                                                                                                                                                                     |
| CIB 16A          | <b>Replaced by FPO 3</b>                                                                                                                                                                                                                                                           |
| <b>CIB 19</b>    | Docket bearing CRO number and to contain all available data concerning a convicted person.                                                                                                                                                                                         |
| <b>CIB 25</b>    | Used for the purpose of reporting monthly on the carrying out of Police Supervision Order on released convicts.                                                                                                                                                                    |
| CIB 28           | <b>Replaced by CR 18</b>                                                                                                                                                                                                                                                           |
| <b>CIB 29</b>    | Nominal Index Card bearing CRO number, name and short description of convicted persons. Key to Form CIB 19                                                                                                                                                                         |
| <b>CR Forms</b>  |                                                                                                                                                                                                                                                                                    |
| <b>CR 1</b>      | Crime Report Booklet                                                                                                                                                                                                                                                               |

|                                           |                                                                                                         |
|-------------------------------------------|---------------------------------------------------------------------------------------------------------|
| <b>CR 2</b>                               | Crime Report Form (NB. To be available in <b>ALL Reception Areas &amp; CIB Offices</b> (replaces CIB 1) |
| <b>CR 3</b>                               | Witness Statement                                                                                       |
| <b>CR 3A</b>                              | Witness Personal Data                                                                                   |
| <b>CR 3B</b>                              | Continuation Sheet                                                                                      |
| <b>CR 3C</b>                              | Police Witness Statement                                                                                |
| <b>CR 4</b>                               | Motor Vehicle Supplementary (For stolen motor vehicles)                                                 |
| <b>CR 5</b>                               | Crime Report Supplementary                                                                              |
| <b>CR 6</b>                               | Caution Statement                                                                                       |
| <b>CR 7</b>                               | Questions and Answer of Suspects                                                                        |
| <b>CR 8</b>                               | Question and Answer of Accused                                                                          |
| <b>CR 9</b>                               | Divisional Crime Brief                                                                                  |
| <b>CR 10</b>                              | Customer Reference                                                                                      |
| <b>CR 11</b>                              | Case Management Index Card                                                                              |
| <b>CR 12</b>                              | Suspect/Wanted/Arrested Person Profile ( <b>replaces CIB 4 &amp; 7</b> )                                |
| <b>CR 14</b>                              | Remand Form                                                                                             |
| <b>CR 15</b>                              | Case File Information Sheet                                                                             |
| <b>CR 16</b>                              | Case File Check List                                                                                    |
| <b>CR 17</b>                              | Major Crime Investigators Worksheet/Report                                                              |
| <b>CR 18</b>                              | Stolen Property excluding vehicles ( <b>replaces CIB 8</b> )                                            |
| <b>CR 19</b>                              | Action Sheet                                                                                            |
| <b>CR 20</b>                              | Message Form                                                                                            |
| <b>CR 21</b>                              | Exhibit Schedule                                                                                        |
| <b>CR 22A</b>                             | Wanted/Person of Interest for Circulation and/or Publication                                            |
| <b>CR 22B</b>                             | Cancellation of Wanted/Person of Interest                                                               |
| <b>SOC Forms</b>                          |                                                                                                         |
| <b>SOC 1</b>                              | Scene Attendance Register                                                                               |
| <b>SOC 1A</b>                             | First Responding Officers                                                                               |
| <b>SOC 1B</b>                             | Crime Scene Log (before cordon)                                                                         |
| <b>SOC 1C</b>                             | Crime Scene Log (after cordon)                                                                          |
| <b>SOC 2</b>                              | SOC/FCSI Report                                                                                         |
| <b>SOC 2A</b>                             | Crime Scene Narrative Report                                                                            |
| <b>SOC 3</b>                              | Exhibit Receipt                                                                                         |
| <b>LAB 1</b>                              | Laboratory Submission Form                                                                              |
| <b>Fingerprint Forms</b>                  |                                                                                                         |
| <b>FP 01</b>                              | Criminal Records – fingerprint of offender                                                              |
| <b>FP 02</b>                              | Elimination of Fingerprints                                                                             |
| <b>FP 03</b>                              | Application for Police Certificates                                                                     |
| <b>Finger Print Act Section 3A (1)</b>    | Consent                                                                                                 |
| <b>Finger Print Act Section 3A (4bi)</b>  | Prove / Disprove                                                                                        |
| <b>Finger Print Act Section 3A (4bii)</b> | Identity                                                                                                |
| <b>VID Forms</b>                          |                                                                                                         |
| <b>ID 1A</b>                              | Notice to Suspect (Part 1)                                                                              |



|                                 |                                                          |
|---------------------------------|----------------------------------------------------------|
| <b>ID 1B</b>                    | Notice to Suspect (Part 2)                               |
| <b>ID 2A</b>                    | Application for ID Parade                                |
| <b>ID 2B</b>                    | First Description of Suspect                             |
| <b>VID/ID/1</b>                 | Consent & Filming of Suspect                             |
| <b>VID/ID/2</b>                 | Viewing of CD by Witness                                 |
| <b>VID/ID/3</b>                 | Summary of Video ID Parade                               |
| <b>Missing Person's Forms</b>   |                                                          |
| <b>M.P.1</b>                    | Report Form                                              |
| <b>M.P.2</b>                    | Risk Assessment Sheet                                    |
| <b>M.P.3</b>                    | Trace Form                                               |
| <b>M.P.4</b>                    | Worksheet                                                |
| <b>M.P.5</b>                    | Register                                                 |
| <b>M.P.6</b>                    | Volunteer Search Log                                     |
| <b>M.P.7</b>                    | Neighbour Canvas Log                                     |
| <b>Witness Protection Forms</b> |                                                          |
| <b>A</b>                        | Application for Admission                                |
| <b>A1</b>                       | Assessment, Verification & Recommendation of Application |
| <b>A2</b>                       | Risk Assessment                                          |

# **CASEFILE CHECKLIST**

Appendix H

The following documents should be attached in each case where applicable. Please use this as a guide and remember that the more comprehensive YOUR file is the better chance YOU will have in securing a conviction.

## **INITIAL CALL/INCIDENT RECORD**

1. Police Control Incident Form

## **CRIME SCENE**

2. Crime scene investigators notes
3. Photographs
4. Plans
5. Forensic documentation & FL Number

## **INVESTIGATION**

6. Victim statements
7. Witness statements including expert(s)
8. Officers statements
9. Witness list (*separate list with personal details etc. (Appendix G).*)
10. Exhibit List (*including medical certificate, Post mortem report etc.*)
11. Other Document list

## **ARREST PHASE**

12. Arrest notes or statements
13. Contemporaneous notes (*Q & A record of interview*)
14. Previous convictions
15. Records of ID parade proceedings

## **CASE PREPARATION**

16. All of the above
17. Case summary (**Force Orders requires Sub Officer & Detective Inspector to sign**)
18. Bail objections completed **using the Remand Form (CR14)**
19. Review by IO & JCF Lawyer if appropriate (*date(s)*)

## **MISCELLANEOUS**

20. Collect relevant newspaper cuttings
21. Collect relevant Film footage
22. Record all contact & provide FREQUENT updates with witnesses, victim(s) (or their families) including police officers.

## **Key Factors to Ensure a Successful Prosecution**

*Appendix I*

### **Witness Care**

- Completion of witness lists including the confidential details as per *Appendix J*.
- Regular contact with witness at key stages (*arrests, charges, court appearances etc.*) whilst continually assessing the risks posed to them.
- Update the master file note within the file.
- Prior to court dates contact all witnesses to ensure their availability and update *Appendix J* with any new dates to avoid.
- Make arrangements for any special measures e.g. holding witnesses out of sight at a secure and comfortable location nearby or in a room set-aside at Court, well before the trials starts.
- Ensure an independent officer, outside of the investigation, assists to manage witness movement / protection.
- Arrangements with Witness Protection must be dealt with well in advance of any court appearances.
- Any significant difficulties in this area must be brought to the attention of the **IO, DDI** or **SIO** as soon as possible.

**No officer should take leave if they are witnesses in an ongoing prosecution case, without prior consultation with Crown Counsel, the Investigating Officer and without authority of their Commanding Officer.**

### **Exhibits**

- Check the case file for a copy of exhibit list
- Check and ensure the whereabouts of all exhibits and make sure they tally with the exhibit list.
- Exhibits that are away from your control, ensure that you have a contact who can produce them should they be required for the trial
- Ensure you have continuity statements for all exhibits being used at Court.

### **Case Conference**

- Ensure that any documents served on the DPP/ Crown counsel are listed and signed for on receipt.
- Seek a case conference at the earliest possibility with Crown counsel
- Discuss any witness issues or special measures with Crown counsel in order that they can plan ahead.
- Make a written record of all discussions / agreements with Crown counsel showing date and time, for accountability
- Ask Crown Counsel for an order of witnesses for the trial to assist in their movement/management and identify potential length of trial

***EVERY EFFORT MUST BE MADE TO PROFESSIONALLY MANAGE ALL PROSECUTION CASES IN ORDER THAT THE JUDICIARY AND PUBLIC RETAIN A HIGH LEVEL OF CONFIDENCE IN JCF***

**Witness list including personal details**

| Family name | Forename(s) | Otherwise called (OC) | Address(s) | Contact numbers | Dates to avoid | Other relatives/contacts |
|-------------|-------------|-----------------------|------------|-----------------|----------------|--------------------------|
|             |             |                       |            |                 |                |                          |
|             |             |                       |            |                 |                |                          |
|             |             |                       |            |                 |                |                          |
|             |             |                       |            |                 |                |                          |
|             |             |                       |            |                 |                |                          |
|             |             |                       |            |                 |                |                          |

**Relevant Exerts from the Bail Act**  
***(Force Orders #3272 dd Feb 18, 2010)***

**Circumstances in which bail may be denied**

4. (1) Where the offence or one of the offences in relation to which the defendant is charged or convicted is punishable with imprisonment, bail may be denied to that defendant in the following circumstances:

(a) the Court, a Justice of the Peace or police officer is satisfied that there are substantial grounds for believing that the defendant, if released on bail would:

- (i) fail to surrender to custody
- (ii) commit an offence while on bail; or
- (iii) interfere with witnesses or otherwise obstruct the course of justice, whether in relation to himself or any other person;

(b).....

(c) the Court is satisfied that it has not been practicable to obtain sufficient information for the purpose of taking the decisions required by this section for want of time since the institution of the proceedings against the defendant;

(d) the defendant, having been released on bail in or in connection with the proceedings for the offence, is arrested in pursuance of section 14 (absconding by person released on bail);

(e) the defendant is charged with an offence alleged to have been committed while he was released on bail;

(f) the defendant's case is adjourned for inquiries or a report and it appears to the Court that it would be impracticable to complete the inquiries or make the report without keeping the defendant in custody.

(2) In deciding whether or not any of the circumstances specified in subsection (1) (a) exists in relation to any defendant, the Court, a Justice of the Peace or police officer shall take into account-

(a) the nature and seriousness of the offence;

(b) the defendant's character, antecedents, association and community ties;

(c) the defendant's record with regard to the fulfilment of his obligations under previous grants of bail;

(d) except in the case of a defendant whose case is adjourned for inquiries or a report, the strength of the evidence of his having committed the offence or having failed to surrender to custody;

(e) whether the defendant is a repeat offender, that is to say, a person who has been convicted on three previous occasions for offences which are punishable with imprisonment; or

(f) any other factor which appears to be relevant including defendant's health profile.

(3) Bail may be denied to a defendant who is charged with or convicted of an offence punishable with imprisonment if the Court, a Justice of the Peace or police officer is satisfied that the defendant should be kept in custody for his own protection or, where he is a child or young person, for his own welfare.

### **Restrictions on conditions of bail**

5. (1) Where a defendant is granted bail, the conditions specified in subsections (2) and (3) of section 6 shall not be imposed unless it appears to the Court, a Justice of the Peace or police officer that it is necessary to do so-

- (a) for the purpose of preventing the occurrence of any of the events referred to in section 4; or
- (b) to enable inquiries or a report to be made into the defendant's physical or mental condition.

(2) Subsection (1) shall apply to any application to the Court to vary the conditions of bail or to impose conditions in respect of bail which has been granted unconditionally-

### **6. General provisions Relating to bail**

6. (1) A person who is granted bail in criminal proceedings shall surrender to custody.

(2) A Court, Justice of the Peace or police officer may, in accordance with regulations made under section 21, require any person to whom bail is granted to provide, at the persons' option, as a condition for bail before his release-

- (a) a surety to secure his surrender to custody; or
- (b) a payment of such amount as may be specified.

(3) A person to whom bail is granted may be required-

- (a) to surrender his travel documents to the Court;
- (b) to inform the Court if he intends to leave Jamaica;
- (c) to report at specified times and dates to a police station;
- (d) to comply with such other requirements as appear to the Court to be necessary to ensure that the person-
  - (i) surrenders to custody;
  - (ii) does not commit an offence while on bail;
  - (iii) does not interfere with witnesses or otherwise obstruct the course of justice, whether in relation to himself or any other person;

(e) to attend at a bail centre at such times as the Court may specify.

(4) The requirements referred to in subsection (2) (d) may include the imposition of a curfew, in respect of any person to whom bail is granted, between the hours specified by the Court, requiring the person to remain within a specified locality during the hours so specified.

(5) Where a parent or guardian of a juvenile consents to be a surety for the juvenile for the purposes of this section, the parent or guardian may be required to ensure that the juvenile complies with any conditions imposed on him by virtue of subsection (3), so, however, that-

- (a) no condition shall be imposed on the parent or guardian of a juvenile by virtue of this subsection where it appears that the juvenile will attain the age of seventeen years before the time to be appointed for him to surrender to custody; and
- (b) the parent or guardian shall not be required to secure compliance with any condition to which his consent does not extend and shall not, in respect of those conditions to which he gave consent, be bound in a sum greater than fifty thousand dollars.

#### **14. Offences of absconding by person release on bail.**

14. (1) A person who has been released on bail in criminal proceedings and has failed to surrender to custody is guilty of an offence unless he has reasonable cause for his failure to surrender to custody.

(2) A person shall be guilty of an offence if-

- (a) having been released on bail in criminal proceedings; and
- (b) having failed to surrender to custody with reasonable cause therefore, he fails to surrender to custody at the appointed place as soon after the appointed time as is reasonably practicable

(3) It shall be for the defendant to prove that he had reasonable cause for failure to surrender to custody.

#### **16. Liability arrest for absconding or breaching conditions of bail.**

(3) A person who has been released on bail in criminal proceedings may be arrested without warrant by a police officer where-

(a) the police officer has reasonable grounds for believing that the person is not likely to surrender to custody;

(b) the police officer has reasonable grounds for-

- (i) believing that the person is likely to breach any of the conditions of his bail; or
- (ii) suspecting that the person has breached any of those conditions;

(c) in the case where the person was released on bail with a surety, the surety notifies the police officer in writing that-

- (i) the person is unlikely to surrender to custody; and
- (ii) for that reason, the surety wishes to be relieved of his obligations as a surety.

(4) A person arrested in pursuance of subsection (3) shall be brought as soon as practicable (being not later than twenty-four hours after his arrest or at least the next sitting of the Court)-

(a) before a Resident Magistrate for the parish in which he is arrested; or

(b) where he is arrested within twenty-four hours of the time appointed for him to surrender to custody, before the Court at which he is to surrender to custody.-

#### **22. Procedures on arrest or detention.**

22. Where a person who is arrested or detained is not charged within twenty-four hours after such arrest or detention, he shall be brought forthwith before a Resident Magistrate or a Justice of the Peace who shall order that the person be released or make such other order as the Resident Magistrate or the Justice of the Peace thinks fit, having regard to the circumstances:

Provided that where an identification parade is required in relation to that person, the person shall not be brought before a Resident Magistrate or a Justice of the Peace but the matter shall be referred to a Resident Magistrate or a Justice of the Peace who shall make any such order in the absence of that person.

## STANDARD OPERATING PROCEDURE (SOP) NEW CRIME ACTS (2010)

The recent enactments of six (6) new anti- crime legislations obligate strict administrative control by the JCF to ensure compliance of their provisions and the upholding of human rights.

These ant-crime legislations listed below were enacted to give additional powers to the criminal justice system in dealing with particular offenders and offences. These legislations are enforced for a life of one year and be extended by a resolution of parliament.

- The Bail (Amendment) Act
- The Bail (Interim Provisions for specified offences) Act
- Constabulary Force (Interim Provision for arrest and detention) Act
- The Offence Against the Person (Amendment) Act
- The Firearms (Amendment) Act
- The Parole (Amendment) Act

Of the Acts mentioned above, The Bail (Amendment) Act, The Bail (Interim Provisions for specified offences) Act, The Constabulary Force (Interim Provision for arrest and detention) Act require new operating procedures as explained below.

### **A. Arrest/Charge for Offences Mentioned Under the Second Schedule of the Bail (Interim Provisions for Specified Offences) Act.**

On the arrest and charge of a person for any offence(s) listed under the 2<sup>nd</sup> Schedule (herein after 2<sup>nd</sup> Schedule offences) of the Act mentioned above, the following steps must be followed:

1. The legislation states that a person charged with a 2<sup>nd</sup> Schedule offence shall not be granted bail until a period of sixty (60) days have elapsed. **The Investigation Office/Custody Office shall make or cause to be an entry in all the relevant register stating whether the offence(s) is a second under the Act.**
2. Previous Convictions: Where the offence falls within paragraphs 7-11 of the 2<sup>nd</sup> Schedule then the person must have had a previous conviction of a 2<sup>nd</sup> Schedule offence for this provision to apply (*See F.O. 3297 dated 12/08/2010*).

**The Investigating Officer/Custody Officer shall state in all relevant entries whether the arrestee has a previous conviction for an offence mentioned under the Act.**



3. The Investigating Officer must complete the '**Application for remand of accused or bail conditions**' Form, for each person charged and enclosed a copy on each file for submission to Court and a copy enclosed on the office file.
4. Investigating Officers shall ensure to have frequent contacts with the Clerk of Courts/Prosecutors on issues of the case, particularly to any information/reason why the accused person should be denied bail.
5. A person who is held in custody without bail **MUST** be brought before the Courts **not more than seven (7) days after the person is first charged with the offence concerned. An entry must be made in all the relevant registers to include, the date on which the person is charged, the offence for which the person is charged and the date of the first court appearance of the accused and the outcome. Custody Officers must ensure that the relevant prisoner records are endorsed accordingly.**
6. If the accused is denied bail by the Courts after his/her first appearance, the every subsequent appearance for bail determination by the Courts (which shall not exceed fourteen days) must be recorded in all the relevant registers. This process must continue until the person is either granted bail or the sixty day (60) days period expires.
7. On the expiration of the sixty (60) days period if the accused is not granted bail by the Court, he/she must be taken before a resident Magistrate for a determination of bail to be made. **An entry must be made in all the relevant registers stating, that the sixty (60) days period has expired, that the accused was taken before a Resident Magistrate and the outcome. Custody Officers must ensure that the relevant prisoner records are endorsed accordingly.**
8. Divisional Commanders shall submit to DCP i/c operations, through their Area Officers a monthly return of prisoners in custody who have been charged with 2<sup>nd</sup> Schedule offences, stating the number of arrestee who have been denied bail by the Courts.

**B. The Constabulary Force (Interim Provision for Arrest and Detention) Act 2010**

This is a separate piece of legislation although it is to be construed as one with the Constabulary Act. Of particular note are the provisions of Part IIA (Secs. 50A-H) which deal with cordon, and curfew, search, arrest and detention. For the period the Act is in force Sec. 3(3) shall be construed as Sec. 50F of the Constabulary Force Act.

## Arrest and Detention

Where the security forces are carrying out any operations by use of cordons and curfews, the following must be observed in making an arrest or detaining any person:

1. No person shall be arrested or detained unless a Divisional commander, Area Commander or member of the Force not below the rank of ACP is satisfied that:
  - a. There is reasonable ground for the arrest and detention of such person
  - b. In the case of a person who is held outside of the area of the cordon or curfew, there is reasonable ground to suspect that the person is, or has been, or is about to be, involved in the commission of a crime in the locality.
2. A person arrested or detained under these provisions must immediately be told of the reasons for such arrest or detention.
3. Immediately after being told of the reasons for his/her arrest/detention, the person must be taken forthwith to a Justice of the Peace who shall determine whether there are reasonable grounds for the arrest or detention.
4. If the person was arrested/detained outside the area of operations (the locality), the Justice of the Peace must be satisfied that there is reasonable ground to suspect that the person is, or has been, or is about to be, involved in the commission of a crime in the locality. **Investigating/Arresting Officers must ensure that the information presented is substantial grounds to satisfy the Justice of the Peace at 3 & 4 above.**
5. If the Justice of the Peace is satisfied that the arrest/detention is reasonable in the interest of justice, he may, having regard to any further investigation, order that the person be further detained for a period not exceeding seventy-two hours. **The arrestee/detainee must be taken to a police station or lock ups without delay and an entry made in accordance with the Prisons (Lock ups) regulations, 1980.**
6. At the expiration of the seventy-two hour period, if the person is still in detention, he/she must be taken before a Resident Magistrate for an order to be made. The investigating/arresting officer must substantial reasons to the Resident Magistrate to justify any request to further remand the arrestee/detainee in custody.
7. If the Justice of the Peace is not satisfied that the arrest/detention of the person was reasonably required in the interest of justice, he shall order that the person be released forthwith. **The arrestee/detainee must be released forthwith and an entry made in the relevant registers, accordingly. A comprehensive**

**report on the issue must be submitted to the Divisional Commander no later than twenty-four hours after the order was made by the Justice of the Peace.**

### **Identification Parade**

Where it is intended to hold an identification parade at the expiration of the seventy-two hour period by the Justice of the Peace, the following must be done:

1. The sub-officer i/c station or the custody officer must inform a Resident Magistrate that the person is being held with a view to the holding of an identification parade.
2. The sub-officer or custody officer must present evidence to satisfy the Magistrate that adequate steps are being taken to expedite the holding of the identification parade.
3. The Magistrate may remand the detained person for such further period as is necessary to conduct the identification parade.
4. If the Magistrate is not satisfied that it is intended to hold an identification parade in respect of the detained person within a reasonable time, order that the detained person be brought before a Court within the twenty-four hours.
5. Where the arrestee/detainee is brought before a Court, the Court shall make such order as it considers appropriate having regards to all circumstances of the case.

### **Statements and Reports**

All statements and reports must contain the relevant procedures as mentioned in this document.

## Court Users Groups

### **Terms of Reference for Court Users Groups**

The Court User Group seeks to enhance the quality of police investigations thus improving the conviction rate in court. The composition of the group will be broad-based and will embrace people from various institutions engaged in the use of the justice system.

The group will examine, among other issues, efficiency, expectations and deficiencies of the service and recommend ways in which they might be improved.

### **Objectives**

1. To identify problems emerging from the court system which impact negatively on prosecutions
2. To initiate measures to improve the working relationship between the RM's, Clerks, DPP and Police
3. To recommend strategies to improve police investigations
4. To initiate proposals for the amendment of legislation where necessary
5. Monitor the progress of recommended solutions

### **Composition of Group(s)**

- **Divisional** -
  - (a) Resident Magistrate
  - (b) Clerks
  - (c) The meeting will be chaired and organized by:-
    - i. **Corporate Area** – Area 4 Crime Officer
    - ii. **St. Catherine** – Area 5 Crime Officer
    - iii. **Remaining Divisions** – DDI for that Division
  - (d) Prosecution Liaison Officers
  - (e) Victim Support
  - (f) Any other representatives as required by the Commissioner of Police
- **Force wide Group** -
  - (a) Superintendent from Investigation Division (Chair)
  - (b) Representatives from the office of the Director of Public Prosecution
  - (c) A member of the Judiciary (Judge of RM)
  - (d) Area Crime Officers
  - (e) Police Officer in charge of the Supreme Court
  - (f) A representative from Training Branch
  - (g) Defense Attorney (legal Aid/Advocates Assoc.)
  - (h) Public Defender
  - (i) Justice Support (Superintendent of Police) and any other representatives as required by the Commissioner of Police

## **Meetings**

1. Divisional meetings will be held on a monthly basis and the force wide group will meet quarterly
2. A secretary should be appointed for the recording of minutes and to handle other administrative matters
3. Copies of the Divisional Group minutes will be sent to the Snr. Superintendent of the Investigation Division for informing Force wide group each month.